

# The M.P. Foreign Liquor Rules, 1996

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State of Madhya Pradesh - Act

The M.P. Foreign Liquor Rules, 1996

MADHYA PRADESH

India

The M.P. Foreign Liquor Rules, 1996

Rule -11-B-1-33-99-CTD-5 of 1996

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In exercise of the powers conferred by sub-section (1) and clauses (d), (e), (f), (g) and (h) of sub-section (2) of Section 62 of the Madhya Pradesh Excise Act, 1915 (No. II of 1915), the State Government hereby makes the following rules, the same having been previously published as required by sub-section (3) of the said Act, namely :-

1.

Short title, application and commencement.-

(1)

These rules may be called the Madhya Pradesh Foreign Liquor Rules, 1996.

(2)

They shall apply to import, export, transport, sale, manufacture, compounding, blending, bottling, possession, etc., of foreign liquor including registration of labels pasted on the bottles or containers.

(3)

These rules shall come into force with effect from first April, 1996.

2.

Definitions.-

In these rules unless the context otherwise requires,-

(1)

"Authorised Excise Officer" means the excise officer authorised by the Excise Commissioner of Madhya Pradesh;

(2)

"Club" means a society of persons associated together for a social intercourse or for any related purpose except acquisition of gain and registered under any enactment relating to registration of societies;

[(2A) "Commercial Club" means the club run for the acquisition of gains or for commercial purpose by a company, firm, an association of persons or any other concern.]

(3)

"Compounding" means the preparation of foreign liquor by the addition of flavouring or colouring agent or both, to spirit;

(4)

"Permit" means a permit issued under these rules and includes a pass and an authorisation;

[(5) "Officer-in-charge" means an officer of the excise department not below the rank of Sub-Inspector appointed as officer in charge in respect of an F.L. 9, F.L. 9A, F.L. 10A, F.L. 11 licence or foreign liquor warehouse;]

(6)

"Verification" means-

(i)

Examining of the seals of the bottles, containers, receptacles, etc. forming the consignment of foreign liquor, to confirm that they have not been tampered, and

(ii)

Ascertaining that the quantity, the number of bottles, containers or receptacles, the date, batch number of manufacture etc. of foreign liquor being transported, exported, imported, manufactured, sold, stocked etc. tally with the details mentioned in the permit or the records maintained therefor.

(7)

"Division" as referred to in these rules shall mean such territorial division comprising such districts as notified for the purpose by the State Government from time to time;

[(8) "On licence" means a licence under which the consumption of liquor at the licensed premises is permitted.

(9)

"Off licence" means a licence under which the consumption of liquor at the licensed premises is not permitted.]

[(10) "Foreign Liquor Warehouse" means a warehouse established on such conditions as determined by the State Government to store and thereafter issue foreign liquor.]

[(11)] The words and expressions used but not defined in these rules, shall carry the meaning as have been assigned to them in the Madhya Pradesh Distillery Rules, 1995.

3.

Grant of licence for manufacture and bottling of foreign liquor.-

(1)

A person intending to construct and run a manufactory or bottlery shall make an application to the State Government through the Excise Commissioner, notifying his scheme and giving all relevant details.

(2)

An application made under sub-rule (1) shall be accompanied by a challan in token of payment of prescribed fee deposited into the treasury.

(3)

The State Government may, if satisfied about the bonafides of the proposed scheme of the applicant, accord sanction and issued a 'Letter of Intent' which shall be valid for one year from the date of communication, unless its validity is extended beyond one year.

(4)

The 'Letter of Intent' communicated under sub-rule (3) shall not confer any right or privilege for grant of a licence and is liable to be revoked or withdrawn at any time in public interest after giving its holder a notice to show cause against such

action and after giving him an opportunity of hearing, if he so desires.

(5)

No compensation for any damage or loss shall be payable when a 'Letter of Intent' is revoked or withdrawn under sub-rule (4).

(6)

The holder of 'Letter of Intent' shall not sell transfer or sub-lease it or enter into any arrangement with any other person for the construction or working of manufactory or bottlery in pursuance of the said 'Letter of Intent' without the previous sanction of the State Government.

(7)

An application, in the prescribed form, for approval of the plant and machinery and map of the building, shall be submitted to the Excise Commissioner.

(8)

Every application referred to in sub-rule (7) shall be accompanied by-

(i)

Copy of the 'Letter of Intent' issued by the State Government;

(ii)

Project report of the proposed manufactory alongwith details regarding the plant and machinery and map of the manufactory building;

(iii)

Any other certificate or authorisation or clearance required from Central Government, a local body, Town and Country Planning Department, Madhya Pradesh Pollution Control Board and any other Department of the State Government, under any enactment or rules in force.

(9)

The Excise Commissioner may, if satisfied that the applicant has fulfilled the requirements of sub-rule (8), approve the map, plant and machinery of the project for the construction and working of the manufactory.

(10)

The applicant shall report to the Excise Commissioner, the date on which the construction of the building and erection of the plant and machinery are completed.

(11)

In case the applicant fails to submit the completion report as contemplated in sub-rule (10) within a period of one year from the date of approval by the Excise Commissioner under sub-rule (9), the approval so granted, shall be liable to be withdrawn without compensation, for any damage or loss :

Provided that, if the Excise Commissioner is satisfied that there is sufficient cause for not constructing and completing the works as per approved plan within the period of one year, he may, for reasons to be recorded in writing, grant extension of time for such period, as he may deem fit.

(12)

When the Excise Commissioner is satisfied that the construction of the building and erection of the plant and machinery are complete in all respects, he may, subject to the prior approval of the State Government, grant a licence for the manufacture of foreign in Form FL 9 or FL 9-A for a period of one year, on payment of such annual licence fee as prescribed by the State Government. The licence may be renewed every year on payment of the prescribed fee as aforesaid, subject to due observance of the provisions of the Act, and rules made thereunder and conditions of the licence.

(13)

No alteration or addition shall be made, without the prior permission of the Excise Commissioner, in or to the buildings of the manufactory or the plant and machinery provided that minor additions or alterations may be made by the licensee under intimation to the Excise Commissioner.

(14)

The licensee shall furnish, when required, security fixed by the Excise Commissioner from time to time, for due observance of the provisions of the Act, rules made and orders issued thereunder.

(15)

The licensee shall not hypothecate, sell, mortgage, transfer or sub-lease the licence or enter into any partnership for the

working of the licence, without the previous permission in writing of the Excise Commissioner. Such permission, if granted, shall be endorsed on the licence.

Manufacture and bottling of foreign liquor under franchise arrangement.- A licensee, who holds a licence in Form FL 9-A, shall before he begins manufacturing and bottling of any brand of foreign liquor under a franchise agreement with original manufacturer or owner of such brand outside Madhya Pradesh, furnish a copy of such franchise agreement with the original manufacturer or owner, alongwith all relevant details. Similarly, if a franchise agreement made with the original manufacturer or owner of a brand is validly terminated by the franchiser or the franchisee, the franchisee shall forthwith report the fact of such termination to the Excise Commissioner and stop manufacture of the brand concerned under the franchise agreement.

5.

Procurement of spirit and storage thereof.-

(1)

A licensee holding a licence in Form FL 9 or FL, 9-A shall procure spirit for the preparation of foreign liquor by transporting it in accordance with the procedure laid down in Rule 14 and Rule 15(2). He may however, be permitted by the Excise Commissioner in special circumstances to import spirit in accordance with the procedure laid down in Rule 10 and Rule 15(1).

(2)

All spirit vats and vessels shall be of such quality, size, shape and material as approved by the Excise Commissioner. They shall be properly gauged and their gauging table shall be prepared by the Authorised Excise Officer. The licensee shall provide calibrated gauging rods etc. and assist in gauging of the aforesaid vats and vessels. Use of ungauged vats and vessels shall be totally prohibited.

(3)

Each vat or vessel shall have legibly painted on it in English or in Hindi, its number, capacity and the use to which it is applied and its details shall be properly registered by the officer-in-charge.

(4)

Store vats shall be kept in a room or building provided with only one door. Such room or building shall be designated as the 'Spirit Room' or a 'Warehouse', and shall be kept under revenue lock.

6.

Quality control.-

(1)

All spirit used in the manufacture of foreign liquor shall be of such standard and quality as may be prescribed or approved by the Excise Commissioner.

(2)

All the containers for storing, blending, reducing, maturing and compounding the spirit shall be kept clean. Water used shall be pure and potable. No ingredient noxious to health shall be added to the spirit stored. The colouring, flavouring, essencing, aromatic agents etc. used for compounding the spirit, shall be of good quality, fit for human consumption and not deleterious to health.

(3)

The licensee shall have to establish his own laboratory within the licensed premises. Such a laboratory shall be well equipped, manned by qualified technical personnel and the expenditure incurred on it shall be borne by the licensee. Sample of every batch of foreign liquor manufactured and read) for bottling shall be analyzed in the laboratory before it is bottled. The issue of a batch shall be allowed only when the sample of foreign liquor is found fit for human consumption. An attested photocopy of every such chemical analysis or test report shall be provided to the officer-in-charge free of cost. The samples shall be drawn under the supervision of and in the presence of officer-in-charge of the manufactory or bottlery.

(4)

(a)

The officer-in-charge of the manufactory or bottlery may stop, pending the order of the Excise Commissioner, issue of foreign liquor which he considers not of good quality and may, on every such occasion take samples of such spirit or foreign liquor at the cost of the licensee for sending them for chemical analysis or test to the departmental laboratory or any other authorised laboratory.

(b)

Excise Commissioner may also direct taking of samples at random of bottled foreign liquor and the officer-in-charge shall draw samples in accordance with the directions issued by the Excise Commissioner in this regard and send them to the departmental or authorised laboratory for chemical analysis or test.

(c)

Spirit or foreign liquor, found sub-standard or unfit for human consumption on chemical analysis or test, shall be rejected and destroyed or disposed of in any other manner under the orders of the Excise Commissioner or an officer authorised by him for the purpose. The Excise Commissioner may also permit redistillation in such cases.

7.

Bottling of foreign liquor.-

(1)

All operations relating to the filling of bottles with foreign liquor shall be conducted under the supervision of the officer-in-charge. Bottled foreign liquor shall be stored in a separate room or rooms called the 'store for bottled liquor', which shall be secured with a revenue lock. In the bottling room, bottling vats may be kept or erected and foreign liquor manufactured may be stored therein. All spirit vats must be secured with revenue locks.

(2)

Foreign liquor manufactured and bottled will be of such strength as specified by the Excise Commissioner from time to time. However, for bottled foreign liquor, a deviation margin upto 1 degree, from the proof strength declared on the label glued to it, will be permitted.

(3)

Every bottle of foreign liquor shall be properly capped and sealed before being transferred to the store.

(4)

The licensee shall paste a label registered with the Excise Commissioner, displaying all the particulars enumerated in sub-rule (1) of Rule 9, to every bottle after filling it with foreign liquor.

8.

Sale of foreign liquor.-

(1)

Categories of licences.- Licences for the sale of foreign liquor shall be of the following categories and the mode of grant of these licences shall be as indicated hereunder :-

[(a) F.L. 1 (Licence for retail sale of foreign liquor in sealed bottles, not to be consumed on the premises). - The licence in Form F.L. 1 shall be granted individually on fixed basic licence fee and licence fee, by inviting applications for each shop, and if the number of applications are more than one then by disposing of applications by draw of lottery or in such other manner as the State Government may direct from time to time. The F.L. 1 licensee shall sell foreign liquor in sealed bottles to consumers and to F.L. 3, F.L. 4, F.L. 4-A and F.L. 5 licensees :

Provided that if no application is received, then the State Government may grant licence in such other manner as directed by general or special order.]

[(aa) Omitted]

[(aa-1) Omitted]

[(aa-2) F.L. 1 AAAA (licence for retail sale of foreign liquor in sealed bottles with permission to consume it on the licensed premises) Procedure prescribed in clause (a) above for the disposal of F.L. 1 licence shall apply mutatis mutandis to the disposal of this licence also. The holder of licence in Form F.L. 1 AAAA shall sell foreign liquor to consumers which may be consumed on the licensed premises and shall sell foreign liquor only in sealed bottles to F.L. 3, F.L. 4, F.L. 4-A, and F.L. 5 licensees.]

(aaa)

F.L. 1-B-(AHATA-Licence). - The licence, which may be granted to an F.L.I or F.L.I-A licensee only, shall permit consumption of [foreign/country liquor] within any premises or AHATA which shall be adjunct to the premises of F.L. 1 or F.L. 1-A licence, specifically mentioned in the schedule annexed to the licence.

[(aaaa) F.L. 1-D (Licence for sale of Beer in sealed bottles/containers, not to be consumed on the premises. - The licence may be granted on such terms and conditions and the manner as prescribed by the State Government by general or special order.]

[(b) Omitted.]

(c)

FL 3-(Hotel Bar Licence). - FL 3 licence holder may sell foreign liquor for consumption on the licensed premises to residents of such hotels for their own use or that of their guests and other casual visitors, with meals and snacks. This licence may be granted to hotels having both lodging and boarding facilities of such scale and standard as may be determined by the State Government.

(d)

FL 4-(Civilian Club Licence). - A civilian club holding FL 4 licence may possess and sell foreign liquor for consumption on the licensed premises by bonafide members of such club or their guests.

[(dd) FL 4-A-(Commercial Club). - A commercial club licence may be granted to a company, firm, association of persons or any other concern which possesses atleast five of the facilities listed below of which facilities Nos. (a-1) and (a-2) are a must :-

(a-1) Swimming pool;

(a-2) Gymnasium having not less than 12 items for physical exercise;

(a-3) Badminton hall;

(a-4) Billiards/pool table;

(a-5) Table tennis hall;

(a-6) Squash Court;

(a-7) Cards room;

(a-8) Lawn tennis Court.

The licensee may possess foreign liquor at the licensed premises and sell it thereat to members of the club or their bonafide guests when accompanied by the member of the club.]

(e)

FL 5-(Occasional Licence). - FL 5 licence holder may possess and sell foreign liquor at dances, sports or other forms of public occasions of purely temporary nature for consumption on the premises specified in the schedule attached with the licence.

(f)

FL 6-(Military Canteen Wholesale Licence). - A military canteen holding FL 6 licence, may possess and sell foreign liquor in wholesale to FL 7 or FL 8 licensees. The licensee shall procure its requirements either by purchase from [FL 9, FL 9-A or FL 10-A] licensee or by importation.

(g)

FL 7-(Military Canteen Retail Licence). - A military canteen approved by and attached to Armed Forces, Border Security Force, Indo-Tibetan-Border Police, [Central Industrial Security Force, Central Reserve Police Force] or any other Para-military force notified by the State Government holding FL 7 licence may possess and sell foreign liquor to FL 8 licensee or to the bonafide defence and police personnel who are duly authorised under the relevant regulations to make such purchases from such canteens. Sales shall be in sealed bottles, consumption on the premises shall be prohibited. The licensee shall procure its stocks by taking issues from FL 6 licensee.

(h)

FL 8-(Military Club Licence). - A military club holding FL 8 licence, may possess and sell foreign liquor in a club or mess run for military or para-military personnel for consumption on the licensed premises by bonafide members of the said club or mess or their guests.

(i)

FL 9-(Bottling Licence). - Holder of an FL 9 licence which may be granted for bottling of foreign liquor, may manufacture and bottle foreign liquor by blending, compounding and reducing spirit. The licensee may sell or transfer foreign liquor to FL 6 [x x x] and FL 11 licensees including the licensees of other States. He shall pay bottling fee at the prescribed rate.

[(j) F.L. 9 A (Special Bottling Licence). - The licence may be granted to such F.L.9/[B-3] licensee who has been franchised (authorised/ conferred franchise) for bottling specified labels or brands of foreign liquor/Beer by the owner of such labels or brands when foreign liquor/Beer of such labels or brands was or is already being manufactured anywhere outside Madhya Pradesh at the time of or before franchising of the concerned F.L. 9/B-1A licensee by the owner of the labels or brands. The Licence shall also be required to be taken by an F.L. 9/B-1A licensee, who wants to manufacture or manufactures foreign liquor/Beer of any labels or brands belonging or owned by the F.L. 9/B-1A licensee himself if foreign liquor/Beer of such labels or brands was or is already being manufactured anywhere outside

Madhya Pradesh.]

[(k) Omitted.]

[(k-1) F.L.10A (Outside manufacturer's central godown licence). - This licence shall be granted to a licensee holding an appropriate licence for the manufacture of foreign liquor outside Madhya Pradesh. This licence may be granted at the divisional headquarters only i.e. Indore, Bhopal, Jabalpur, Gwalior, Ujjain, Sagar, Rewa, such licence may be granted for one or more said divisions. The licensee shall be permitted to import/stock without payment of duty only those labels of foreign liquor that are being manufactured outside Madhya Pradesh under an appropriate licence and which are registered with the Excise Commissioner, Madhya Pradesh under Rule 9. He shall sell his stock without payment of duty to an F.L. 6 licensee or may transfer/transport it to 'foreign liquor warehouse' for being stored therein.]

(l)

FL 11-Licence (Wholesale licence of foreign liquor). - The licensee shall stock and sell only such foreign liquor on which duty at the prescribed rate has been pre-paid and shall sell foreign liquor to such licensee/clubs as directed by the Excise Commissioner. He may also be allowed to import foreign liquor under Rule 10(2). No licence in Form FL 11 shall be granted or renewed in the State, if the "auction-money-adjustment-system" of grant of licences in Form FL 1-A is in operation as described in Rule 11(A) of General Licence Condition Rules.

[(2) Period of licences and their renewal. - Licences in Forms [F.L.-1 AAAA], F.L. 1B, F.L. 2, F.L. 3, F.L.4, F.L. 5, F.L. 6, F.L. 7, F.L. 8, F.L. 9, F.L. 9A, and F.L. 11 may be granted for one year and in Form F.L. 5 for a particular occasion on prepayment of licence fee fixed by the State Government which may be revised from time to time. All these licences including licence in Forms F.L. 9, F.L. 9A and F.L. 11 but excluding licence in Form F.L. 5 will be subject to renewal every year on payment of the prescribed licence fee, subject to good conduct and clean records of the licensee and due observance of licence conditions. Provisions of Act and rules made thereunder. The licences in Forms F.L. 1, F.L. 1AAA, [F.L.-1 AAAA], F.L. 1B, F.L. 1D, F.L. 10 and F.L. 10A shall be granted for a period of one year or a shorter period unless directed otherwise by the State Government.]

[(3) Licensing Authorities. - Licences in Forms F.L. 4, F.L. 4A, F.L. 9, F.L. 9A, F.L. 10A and F.L. 11 shall be granted and issued by the Excise Commissioner. F.L. 2 and F.L. 3 licences shall be granted by the Collector as per the guidelines laid down by the State Government. Collector shall also be the licensing authority for F.L. 1, F.L. 1A, F.L. 1AAA, F.L. 1B, F.L. 1D, F.L. 5, F.L. 6, F.L. 7 and F.L. 8 licences.]

[(4) Omitted]

(5)

Procedure for application and sanction of the licences. - Application for the grant of any licence cited in sub-rule (1) shall be submitted to the licensing authority specified in sub-rule (3), who may, after necessary enquiries and observing the procedure prescribed by the State Government, or the Excise Commissioner, may grant licence if the applicant is found suitable or refuse to grant the licence.

(6)

[Attachment of certain licences with the nearest FL 1, FL 1-A, [x x x] FL 1-AAA [x x x] or FL 10-A licences.] - (a) FL 2, FL 3, FL 4, FL 4-A or FL 5 licensee shall purchase [foreign liquor (excluding beer)] from such FL 1, FL 1-A, [x x x] or FL 1-AAA licensee of the district [and shall purchase beer from such F.L. 1D licensee] as may be specified by the Collector in accordance with the general directions of the Excise Commissioner or State Government. Purchase of such brands or labels, that are not available with any FL 1, FL 1-A, [x x x] or FL 1-AAA licensee of the district, from any similar licensee of any other neighbouring district of the State, may be authorised by the Excise Commissioner in special circumstances.

[(b) Omitted]

(7)

[Restriction regarding stocking and sale on certain licensees.] - FL 2, FL 3, FL 4, FL 4-A, FL 5 and FL 8 licensees shall be permitted to sell foreign liquor only from open bottles in glasses or pegs for consumption on the licensed premises and foreign liquor thus sold, shall not be removable therefrom.[omitted.]

(8)

All licensees to obtain transport permit. - Every licensee shall obtain permit in the prescribed form for transporting foreign liquor to his licensed premises.

9.

Registration of labels.-

(1)

No foreign liquor shall be transported within, imported into, exported from and sold within Madhya Pradesh, unless the following legends and details are printed on the labels pasted to the bottles of foreign liquor :-

- (a)  
"Consumption of liquor is injurious to health".
- (b)  
"For sale in Madhya Pradesh only" or "Duty not paid in Madhya Pradesh" as the case may be.
- (c)  
Batch No., Month and year of manufacture.
- (d)  
Name and place of distillery, manufactory or bottlery.
- (e)  
Alcoholic contents and proof strength.
- (f)  
Brand with contents.
- (g)  
Registration No. of the brand/label.
- [(h) Minimum selling price as directed by the Excise Commissioner.]

(2)  
Only such bottles or cans of foreign liquor, with labels showing legends/details as specified in sub-rule (1) duly registered with the Excise Commissioner in accordance with sub-rules (3) and (4) may be sold in, transported within, imported into, or exported from Madhya Pradesh :

Provided that the labels manufactured by any bottling licensee of Madhya Pradesh that have been approved by the Excise Commissioner before the commencement of these rules, shall be deemed to have been duly registered under sub-rules (3) and (4) :

[Provided further that the labels registered for each manufactory or the labels approved by the Excise Commissioner before the commencement of these rules, which shall be deemed to have been duly registered under sub-rules (3) and (4) shall be compulsorily renewed every year. Annual renewal fees for each label/labels shall be such as may be prescribed by the Government. No label/labels shall be used by any manufacturer unless it has been duly registered or renewed. If any label/labels are cancelled by the Excise Commissioner under rules (6) on the ground that such label/labels has caused or are causing losses to state revenue, then owner of such label/labels shall not be entitled for registration of any new label for a period of one year beginning with the date of cancellation of that label/labels.]

[(3) Licensee shall make an application to the Excise Commissioner for registration/renewal of label/labels alongwith the fee as prescribed for each kind of label. Three printed copies of the label to be registered and a challan in proof of payment of the prescribed registration fee, deposited in the treasury of the district shall be enclosed alongwith the application. The format of the label shall contain the details mentioned in sub-rule (1). An application for renewal of label/labels shall be filed alongwith the challan of prescribed fee before the end of current year mentioning details of prior registration and renewal.

(4)  
On receipt of application for Registration of label/labels, the Excise Commissioner, may make such enquiry as he deems proper, if he is satisfied that the pre-requisites specified in sub-rule (3) have been complied with and there is no objection to such registration, he may register it. No such label/ labels shall be registered which bears similarity or resemblance to any prevalent label of any other manufactory.]

(5)  
A label as aforesaid in sub-rule (1) shall not have any figure, symbol, picture, insignia, etc. that looks obscene or that may offend the religious feelings of any particular class or hurts the sentiments or pride of any group, community or institution. In case of a dispute whether a label is obscene, offensive or hurtful, the matter shall be referred to the Excise Commissioner and his decision thereon shall be final and binding.

(6)  
The Excise Commissioner may order cancellation of registration of a label made under sub-rule (4), if liquor sold under any such registered label is found sub-standard or if he is convinced that the sales under that label are causing financial losses to the State Government or if he is satisfied that the label is obscene, outrageous or hurtful. He shall, however,



before passing such an order, given the affected licensee an opportunity to make a representation against such proposed cancellation. Consequent upon such cancellation, the Excise Commissioner may also pass suitable order regarding disposal of the stocks of the cancelled label held by any licensee and the State Government shall not be liable to pay any compensation to the licensee for any loss or damage. [The procedure regarding the disposal of stocks and for any loss or damage to the licensee in consequence of non renewal of labels, shall be the same as is applicable after cancellation of the label/labels.]

10.

Import of foreign liquor.-

(1)

No foreign liquor shall be imported into Madhya Pradesh without prepayment of duty except under and in accordance with no objection certificate and/or a permit to be obtained or issued as described below :-

(a)

No-objection certificate for the import of foreign liquor may be granted to FL6 and [FL 10-A]licensees on prepayment of import fee at the prescribed rate. No-objection certificate shall be in Form FL 21.

(b)

Import of only those labels of foreign liquor shall be permitted which are registered with the Excise Commissioner under Rule 9.

(c)

Excise Commissioner or an officer authorised by him may permit any licensee, to import foreign liquor imported from outside India, subject to prepayment of the prescribed import fee and bottle fee. An FL 9 or FL 9-A licensee may be permitted by the Excise Commissioner to import foreign liquor manufactured outside India in bulk for the purposes of blending without payment of bottle fee. For this purpose no-objection certificate shall be in Form FL 20.

(d)

The importer shall apply to the Excise Commissioner or Collector or the authorised Excise Officer of the importing district. The relevant details i.e. the name, address of the importer and his agent at the place of export, quantity, description and alcoholic strength of the liquor, the purpose of import, the unit whence it shall be imported, the location of his licensed premises whereto the imported foreign liquor shall be transported, registration No. of the label etc. shall be given in the application.

(e)

The importer shall attach to his application challans indicating that he has prepaid import fee, or bottle fee or both as the case may be at the prescribed rate in the Treasury of his district.

(f)

The Excise Commissioner or Collector or the authorised Excise Officer of the importing district, may, after making necessary enquiries and satisfying himself that there is no objection to the issuance of the certificate, grant and issue no-objection certificate in Form FL 20 or FL 21, as the case may be.

(g)

The no-objection certificate granted under clause (f) shall be in triplicate, Part 1 shall be retained in the office of issue, Part II shall be mailed to the authority who may authorise the export and Part III shall be handed over to the applicant.

(h)

All importation shall be done on the authority of a valid export-pass granted by the competent authority of the exporting district. All the terms and conditions of such export pass shall be strictly adhered to, by the importer.

(i)

The Excise Commissioner may authorise import of such "special liquors" as ingredient for blending purpose by an FL 9 or FL 9-A licensee as he may deem fit without payment of any duty or import fee.

Explanation. - The words "special liquors" shall include "high-bouquet-spirit", cane-juice spirit, sherry, grape spirit, malt-spirit of varying strengths and other specially flavoured spirits for blending purposes.

(2)

Import of foreign liquor on prepayment of duty in Madhya Pradesh may be allowed by the Excise Commissioner as indicated below :-

(a)

Import of only such labels shall be permitted that are registered with the Excise Commissioner under Rule 9 provided

that import of foreign liquor imported from outside India may be permitted even if its label/labels is/are not registered under Rule 9.

(b)

No-objection certificate for the import of foreign liquor shall be granted to such licensee or individual as directed by the Excise Commissioner on prepayment of duty and other prescribed fees. While applying for no-objection certificate, the importer shall attach to his application a challan indicating that he has prepaid duty, or other prescribed fee or both, as the case may be, in a treasury of his district.

(c)

The no-objection certificate shall be in Form FL 20.

(d)

The authority granting no-objection certificate under this sub-rule shall follow the procedure described in clauses (d), (e), (f) and (g) of sub-rule (1) of this Rule.

11.

Intimation of arrival of the consignment.-

(1)

As soon as the consignment of foreign liquor covered by the no-objection certificate and permit reaches the licensed premises, the consignee shall immediately inform the District Excise Officer in writing.

(2)

On receipt of such intimation, the District Excise Officer shall depute an Excise Officer, not below the rank of sub-inspector, for verification of the consignment. The Excise Officer, thus deputed, shall carry out the verification, make necessary entries in the permit issued by the exporting State and enter the details of the quantity received in the records and registers maintained by the licensee. He shall prepare and send a verification report to the District Excise Officer who in turn shall mail it to the authority who issued the export permit.

(3)

The verification must be completed within 24 hours of such intimation in writing. Cases of discrepancies should be intimated to the District Excise Officer at once.

(4)

If the consignment is not verified by an Excise Officer within 24 hours of the written intimation, the importer shall open the consignment, verify the quantity and other details and record the particulars in the prescribed registers.

(5)

The consignment shall be brought intact to the licensed premises through the route mentioned in the export permit without unloading the same at any place other than the place of destination.

12.

Export of foreign liquor.-

(1)

Export of only those labels of foreign liquor shall be permitted which are registered with the Excise Commissioner under Rule 9.

(2)

Only FL 9 or FL 9-A licensee shall be permitted to export.

(3)

The exporter shall pay the prescribed export-fee in advance in the treasury of his district.

(4)

The exporter shall also deposit the prescribed duty leviable on the full quantity of foreign liquor to be exported, or furnish a bank guarantee for an equal amount from a local branch of a nationalised bank or execute a bond with adequate solvent sureties for the amount in Form FL 23. After the receipt of the verification report in respect of the despatched consignment from the officer-in-charge of the importing unit, further consignment of foreign liquor involving the same or lesser amount of duty may be exported on the strength of the same cash deposit or bank guarantee or bond.

(5)

Application for the grant of export permit shall be made to the Collector or the authorised Excise Officer of the exporting district or any other officer specially authorised by the Excise Commissioner. The necessary details i.e. the name, address of the exporter and his agent at the place of import, quantity, description and alcoholic strength of the foreign

liquor, the purpose of export, the unit whereto it shall be exported, registration No. of label etc. shall be mentioned in the application. The exporter shall also attach to his application, a no-objection certificate or an import pass or permit issued by the authorised Excise authority of the importing district.

(6)

On receipt of an application under sub-rule (5) the Collector or authorised Excise Officer shall make necessary enquiries. If he finds that conditions laid down in sub-rules (3), (4) and (5) have been satisfactorily complied with and is of the opinion that there is no objection to the issuance of the export permit, he shall, issue the permit in Form FL 22.

(7)

The export permit in Form FL 22 shall be in quadruplicate. The first part shall be retained in the office of issue, the second part shall be handed over to the exporter which will cover the consignment in transit, the third and fourth parts shall be mailed under registered post to the officer-in-charge of the importing unit and the officer who has authorised the import, respectively.

13.

Securing the verification report.-

The exporter shall obtain a verification report from the officer-in-charge of the importing unit and furnish it to the authority who issued the export permit within 21 days of the expiry of period of permit. If the exporter fails to do so, the leviable duty on the foreign liquor exported shall be recover from deposits made, bank guarantee furnished or the security bond executed in accordance with sub-rule (4) of Rule 12. This shall be in addition to any other penalty which may be imposed under Rule 19.

In case the foreign liquor is exported to another country, the licensee exporting the liquor shall furnish documentary evidence that the consignment has actually left the country.

14.

Procedure for the transport of foreign liquor, E.N.A. etc. -

(1)

Transport by an F.L. 9, F.L. 9A, F.L. 10A, B-1-A licensee to 'Foreign Liquor Warehouse'.

Only an FL. 9, F.L. 9A, F.L. 10A or B-1-A licensee shall transport foreign liquor to a 'Foreign Liquor Warehouse' for storage thereat. For this purpose, the licensee shall deposit transport fee in his district and obtain a No Objection Certificate in Form F.L. 12 from the officer in charge 'Foreign Liquor Warehouse'. No Objection Certificate in Form F.L. 12 shall be invariably obtained even if the licensed premises of the licensee transporting foreign liquor and 'Foreign Liquor Warehouse' are located at the same headquarters or in the same city or district. Transport permit in F.L. 14 for the quantity mentioned in the No Objection Certificate in Form 12 shall be issued by the Officer in charge of F.L. 9, F.L. 9A, F.L. 10A or B-1A licence.

(2)

Transport by an F.L. 1A/F.L. 1AAA/F.L. 1D licensee from 'Foreign Liquor Warehouse'.

A licensee holding a licence in Form F.L. 1A, F.L. 1AAA or F.L. 1D shall transport foreign liquor from 'Foreign Liquor Warehouse' established at the headquarters of the division within which the licensed premises of the licensee are situated. After depositing duty at the prescribed rate in the district on the full quantity of foreign liquor to be transported the licensee shall obtain a No Objection Certificate in Form F.L. 12A from the Assistant Excise Commissioner/ District Excise Officer of the purchasing district. No Objection Certificate in Form F.L. 12A shall be obtained even if the licensed premises of the licensee and the 'Foreign Liquor Warehouse' are situated at the same headquarters or in the same city or district and only intra-district transport is involved. The licensee shall obtain transport permit in Form F.L. 14A from the Officer in charge 'Foreign Liquor Warehouse' and transport the consigned foreign liquor to his licensed premises.

(3)

Transport by an F.L. 2, F.L. 3, F.L. 4, F.L. 4A, F.L. 5, C.S. 2A, C.S. 2B licensee :

An F.L. 2, F.L. 3, F.L. 4, F.L. 4A, F.L. 5, C.S. 2A, C.S. 2B licensee shall procure foreign liquor from an F.L. 1 A, F.L. 1 AAA or F.L. 1D licensee of the same district as may be specified by the Collector in accordance with the general directions of the Excise Commissioner or State Government. N.O.C. is not required in such cases. After depositing transport fee, F.L. 2, F.L. 3, F.L. 4, F.L. 4A, F.L. 5, CIS. 2A, C.S. 2B licensee, shall obtain a transport permit in Form F.L. 15 from the Assistant Excise Commissioner/District Excise Officer of his district and transport foreign liquor to his licensed premises. An F.L. 3 licensee, if permitted to transport foreign liquor from a different district, shall follow the procedure given in clause (c) to sub-rule (6) below.

(4)

Transport by an F.L. 9 or F.L. 9A licensee :

An F.L. 9 or F.L. 9A licensee intending to transport spirit/E.N.A. from a D-1 licensee, shall deposit transport fee in his district and transport spirit/E.N.A. to his licensed premises from a D-1 licensee after obtaining a transport permit in Form F.L. 16 from the Officer in charge, D-1 licence. No Objection Certificate shall not be required in such cases as all such transports are authorised by the Excise Commissioner under sub-rule (2) of Rule 15.

(5)

Transport by an F.L. 6 licensee :

An F.L. 6 licensee shall purchase foreign liquor from an F.L. 9, F.L. 9A, F.L. 10A or B-1-A licensee. The F.L. 6 licensee, after depositing transport fee in his district, shall obtain No Objection Certificate in Form F.L. 13 from the Assistant Excise Commissioner/District Excise Officer of his district, if foreign liquor is to be transported from a different district. In case of intra-district transport, No Objection Certificate shall not be necessary. Transport permit in Form F.L. 17 shall be issued by the Officer in charge of F.L. 9/F.L. 9A/F.L. 10A/B-1-A licence.

(6)

Transport by F.L. 3, F.L. 7, F.L. 8 licensees :

(a)

An F.L. 7 or F.L. 8 licensee, purchasing foreign liquor from an F.L. 6 licensee, shall first deposit prescribed duty and bottle fee in his district and procure no objection certificate in Form F.L. 13A from the Assistant Excise Commissioner/District Excise Officer of his district in inter-district transport of foreign liquor is involved. N.O.C. shall not be necessary if only intra-district transport is taking place. Transport permit issued by the Assistant Excise Commissioner/ District Excise Officer of the selling district shall be in Form F.L. 18.

(b)

If an F.L. 8 licensee is taking issues from an F.L. 7 licensee, he shall deposit only transport fee and in case foreign liquor is to be transported from a different district, obtain No Objection Certificate in Form F.L. 13-A. When only intra-district transport is to take place, N.O.C. is not required. Transport permit in Form F.L. 18 shall be issued by the Assistant Excise Commissioner/ District Excise Officer of the selling district.

(c)

An FL. 3 licensee, if specially permitted by the Excise Commissioner to procure his supplies from an F.L. 1A, F.L. 1AAA, F.L. 1D licensee of a different district, shall follow the procedure given in clause (b) above.

(7)

Intra-group transfer of Country/Foreign Liquor :

The licensee of any group of country/foreign liquor shops may transfer stock of country/foreign liquor from any F.L. 1 A, F.L. 1AAA, F.L. 1D, C.S. 2A, C.S. 2B shop of his group to a similar shop of the same group. For this purpose, transport permit shall be issued by Assistant District Excise Officer/Sub-Inspector excise of the concerned circle after taking permission of the Assistant Excise Commissioner/District Excise Officer of the district. Transport permit shall be issued without any fee in Form F.L. 19.

(8)

All licensees to obtain transport permit:

Every licensee shall obtain transport permit in the prescribed Form for transporting foreign liquor to his licensed premises. He shall strictly follow all the conditions given in the transport permit. He shall also be bound by Rule (ix) of General Licence Conditions, provisions of the M.P. Excise Act, rules made thereunder and instructions issued in this behalf by the Excise Commissioner.

(9)

Minimum quantity of transport:

(a)

The minimum quantity of foreign liquor that may be transported from a manufacturing unit i.e. F.L. 9, F.L. 9A, B-1-A licensee to a Foreign Liquor Warehouse or issued from a Foreign Liquor Warehouse to an F.L. 1A, F.L. 1AAA or F.L. 1D, licensee at one tune may be fixed by the Excise Commissioner and transportation/ issue of foreign liquor in a quantity less than the quantity thus fixed shall not be permissible.

(b)

In cases not covered by clause (a) above, an F.L. 6, F.L. 9, F.L. 9A, F.L. 10A, B-1-A licensee shall not sell foreign liquor

in a quantity less than 54 bulk litres in a single transaction.]

15.

Procurement of spirit/E.N.A. for the manufacture of foreign liquor.-

(1)

(a)

Import of spirit or ENA for the manufacture of foreign liquor without payment of duty by an FL 9 or FL 9-A licensee may be permitted by the Excise Commissioner.

(b)

Every application for the issue of a no-objection certificate for the import of spirit or ENA shall be accompanied by a challan in token of depositing import fee at the prescribed rate in the importing district.

(c)

The procedure laid down in clauses (d), (e), (f) and (g) of sub-rule (1) of Rule 10 shall be followed while issuing no-objection certificate.

(d)

No-objection certificate for the import of spirit or ENA for this purpose shall be in Form FL 20.

(2)

(a)

Transport of spirit or ENA from a D-1 licensee by an FL 9 or FL 9-A licensee for the manufacturer of foreign liquor may be permitted by the Excise Commissioner.

(b)

Every such application for the transport of spirit or ENA shall be accompanied by a challan showing that the prescribed transport fee has been deposited in the Treasury by the FL 9 or FL 9-A licensee.

(c)

After the receipt of permission from the Excise Commissioner under clause (a) above, the officer-in-charge of the D-1 licence shall issue the transport permit after following the procedure as laid down in sub-rule (4) or (5), as the case may be, of Rule 14, in Form FL 14 or FL 15.

16.

Permissible limits of losses.-

(1)

An allowance shall be made for the actual loss of spirit by leakage, evaporation etc., and of bottled foreign liquor by breakage caused by loading, unloading, handling etc. in transit, at the rate mentioned hereinafter. The total quantity of bottled foreign liquor transported or exported shall be the basis for computation of permissible losses.

(2)

Wastage allowances on the spirit transported to the premises of FL 9 or FL 9-A licensee shall be the same as given in sub-rule (4) of Rule 6 of the Distillery Rules, 1995.

(3)

Maximum wastage allowance for all exports of bottled foreign liquor shall be 0.25% irrespective of distance.

(4)

Maximum wastage allowance for all transports of bottled foreign liquor shall be 0.1% if the selling licensee and the purchasing licensee belong to the same district. It shall be 0.25% if they belong to different districts.

(5)

If wastages/losses during the export or transport of bottled foreign liquor exceed the permissible limit prescribed in sub-rule (3) or (4), the prescribed duty on such excess wastage of bottled foreign liquor shall be recovered from the licensee.

17.

Storage, racking, reduction losses.-

(1)

Maximum permissible limit of losses of spirit due to racking, storage, evaporation, reduction, blending etc., for FL 9 or FL 9-A licensee shall be the same as given in sub-rule (2) of Rule 6 of the Distillery Rules, 1995.

(2)

No wastage allowance on storage of bottled foreign liquor stocked with [FL 6 [x x x] or FL 10-A] licensee is permitted. If

during verification any deficiency is discovered, duty and bottle fee at the prescribed rate on the quantity found deficit shall be recoverable from the licensee in addition to any other penalty which may be imposed under Rule 19.

18.

Miscellaneous.-

(1)

Transit of foreign liquor through Madhya Pradesh shall be subject to such conditions and restrictions as may be notified by the Excise Commissioner and such conditions and restrictions shall be binding on all such transit movements.

(2)

(a)

Bottle fee per quart bottle both for the spirit and the malt liquor shall be payable at the rate fixed by the State Government from time to time. Different scales of bottle fee may be prescribed for different kinds or varieties of foreign liquor including that imported from outside the country.

(b)

The rate of bottle fee per magnum bottle shall be one and a half time the rate per quart bottle, the rate per pint bottle shall be half of the rate per quart bottle, and the rate per nip bottle shall be one fourth of the rate per quart bottle.

Explanation. - A bottle of the capacity of less than 191 millilitres but not less than 142 millilitres shall be classed as a nip bottle; a bottle of the capacity of less than 383 millilitres but not less than 246 millilitres shall be a pint bottle; a bottle of the capacity of less than 767 millilitres but not less than 495 millilitres shall be classed as a quart bottle, and a bottle of the capacity of not less than 767 millilitres but not more than 1000 millilitres shall be classed as a magnum bottle.

(3)

No duty, tax, fee or levy shall be payable on foreign liquor exported to any other country.

(4)

All export, import and transport of foreign liquor shall be at the cost and risk of the licensee. No duty import-fee, export-fee, transport-fee or bottle-fee shall be refundable on ground of any loss caused to the licensee.

(5)

The exporter or transporter shall strictly follow the itinerary specified in the export or transport permit which will invariably accompany the consignment. The consignment shall be taken intact directly to the destination within the validity period of the permit and under no circumstances it shall be broken, unloaded or disposed of during transit.

(6)

After the expiry or cancellation of the licence in Form FL 6, FL 9, FL 9-A [ [x x x] or FL 10-A] or FL 11 the licensee shall place the entire stock of spirit or bottled foreign liquor or both as the case may be, under the control of the [Asstt. Excise Commissioner/District Excise Officer], The former licensee may be permitted to dispose of such balances within 30 days of such expiry or cancellation, to any other licensee to whom it can be sold. If he is unable to dispose of such balances in the aforesaid manner and within the prescribed time period, the Excise Commissioner may ask any other licensee of the State who is permitted under the rules to purchase such balance, to buy all or part of such balance at a rate fixed by him or give any other directions about their disposal, including their destruction. Foreign liquor left under similar circumstances with FL 1, [FL 1-A, [x x x] FL 1-AAA], FL 2, FL 3, FL 4, FL 5, FL 7 or FL 8 licensee shall be disposed of in accordance with the procedure laid down in General Licence Condition No. XXV.

(7)

The licensee shall be bound by the orders issued by the Excise Commissioner from time to time.

(8)

Every licensee under these rules shall keep his stock of foreign liquor on the premises specified in his licence only.

(9)

FL 1, [FL 1-A, [x x x] ] FL 1-C, FL 2, FL 3, FL 4, FL 5, FL 7 and FL 8 licensees shall be liable to pay the difference of bottle fee on the balance of stocks of foreign liquor in the event of enhancement of the scale of bottle-fee during the currency or on the expiry of the licence, but no refunds shall be permissible to them on such stocks if the scale of bottle-fee is reduced.

(10)

The Excise Commissioner may for sufficient reasons to be recorded in writing restrict the import or transport of foreign liquor by holders of foreign liquor licences, in respect of whom no quota has been fixed under the conditions of their licences.

(11)

A bonafide traveller entering Madhya Pradesh may import without any restriction, for his private consumption, foreign liquor not exceeding two quart bottles.

(12)

The maximum quantity of foreign liquor that can be possessed by an [FL 4 or FL 4-A] licensee at any point of time shall be fixed by the licensing authority and the quantity thus fixed shall be in quart bottles and shall be entered in the licence.

(13)

Bottling fee, bottle-fee, import-fee, export-fee, transport-fee and duty payable under these rules shall be such as prescribed by the State Government by issuing notifications from time to time.

(14)

Duty, import-fee, bottling-fee, export-fee, may be levied on the basis of ex-distillery selling price declared by the manufacturer to the Excise Commissioner or Collector from time to time.

(15)

Duty, bottle-fee, transport-fee, import-fee, export-fee, shall be deposited in the district in which the licensed premises of the licensee, transporting, importing or exporting foreign liquor is situated.

(16)

It shall be lawful for the licensing authority to impose such reasonable additional conditions on any licensee as he deems proper, to ensure compliance of the provisions of the Act, rules or conditions of the licence.

[(17) The State Government shall have the power to cancel the licence granted by any licensing authority in violation of any provision of these rules or the Act or any general guidelines or directions issued by the State Government for grant of such licence. In case a licence is cancelled by the State Government under this sub-rule, the proportionate licence fee, in respect of such licence for the remaining period for which the licence would have been in force, shall be refundable to the person concerned.]

[(18) If holder of a licence granted by any licensing authority under these rules, is convicted of an offence under the Act or for breach of the rules or conditions of the licence, and the Licensing Authority on the proposal of the [Asstt. Excise Commissioner/District Excise Officer] or any officer authorised by him in this behalf, does not act to suspend or cancel the licence under the provisions of Section 31 of the Act, the State Government or an officer authorised by it in this behalf after hearing the licensee may suspend or cancel the licence.]

[(19) Omitted]

19.

Penalties .-

(1)

Without prejudice to the provisions of the Act, or condition No. 4 of licence in Form FL 1, condition No. 7 of licence in Form FL 2, condition No. 4 of licence in Form FL 3, the Excise Commissioner or the Collector may impose a penalty not exceeding Rs. 50,000 for contravention of any of these rules or the provisions of the Act or any other rules made under the Act or the order issued by the Excise Commissioner.

(2)

On all deficiencies in excess of the limits allowed under sub-rule (2) of Rule 16 and sub-rule (1) of Rule 17, the FL 9 or FL 9-A licensee shall be liable to pay penalty at a rate not exceeding Rs. 25 per proof litre in case of spirit and Rs. 65 in case of foreign liquor excluding beer as may be imposed by the Excise Commissioner or any officer authorised by him : Provided that if it be proved to the satisfaction of the Excise Commissioner or the authorised officer that such excess deficiency or loss was due to some unavoidable cause, he may waive the penalty impossible under this sub-rule.

(3)

The Excise Commissioner or the Collector may suspend or cancel the licence under Section 31 of the Act upon a contravention of any of these rules or provisions of the Act, or any other rules made under the Act, or the orders issued by the Excise Commissioner.

20.

Taking security from FL 2 and FL 3 licences.-

Every FL 2 and FL 3 licensee shall furnish cash security or bank guarantee for an amount fixed by the State Government or the Excise Commissioner for due compliance of licence conditions. In case any penalty is imposed on a licensee owing to infraction of any licence condition, the penalty thus imposed shall be paid by him forthwith and in case

of default the amount of penalty shall be recovered from the cash security or the bank guarantee as aforesaid. In such an eventuality, the bank guarantee or the cash security shall be indemnified to that extent by the licensee within 7 days.

21.

Repeals.-

All rules corresponding to these rules in force immediately before the commencement of these rules are hereby repealed in respect of matters covered by these rules :

Provided that any order made or action taken under the rules so repealed shall be deemed to have been made or taken under the corresponding provisions of these rules.

[Form FL 1]

Licence for the retail sale of Foreign Liquor

Under clause (a) of sub-rule (1) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996 and in consideration of an annual licence fee of Rs....., this licence is hereby granted to..... to sell foreign liquor in retail at the licensed premises situated in..... in the town/village..... District..... from..... to..... subject to the following conditions, namely :-

Conditions

1. The shop shall be established at the premises approved by the licensing authority as indicated in the Schedule I below and the site shall not be changed without previous permission of the licensing authority.
2. Foreign Liquor shall be stocked and sold in sealed bottles only.
3. The licensee shall not sell or have in his stock Foreign Liquor which is unfit for human consumption.
- 4.

The minimum quantity of spirit which shall be brought for sale from..... is fixed as below :-

Minimum quantity in P.L./B.L.

Yearly                      Fortnightly

Spirit

5. Consumption of liquor in the premises is prohibited.
6. The licensee shall preserve all the permits and invoices of stocks received in proper order and produce them before the inspecting authorities.
7. The licensee shall maintain day-to-day true account of all quantity of foreign liquor received, stocked and sold.
8. The licensee shall purchase foreign liquor from..... warehouse.
9. The licensee shall stock and sell only that foreign liquor on which duty has been paid.
10. The licensee is bound by the General licence conditions except conditions II-A and XIII.
11. The licensee shall keep the shop closed on such dry days as are specified in Schedule-II.
12. On breach of any condition of this licence or the provisions of the Madhya Pradesh Excise Act, 1915 and the rules, made thereunder or order issued by the Excise Commissioner, this licence may be suspended or cancelled by the licensing authority.

Date.....

Collector

SCHEDULE

Description of site

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

SCHEDULE

List of dry days



Form FL 1-A

[An "Off" licence, under auction amount adjustment system for retail sale of foreign liquor with permission to sell country liquor also, not to be consumed on the licensed premises]

Under Clause (aa) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 a licence is hereby granted to Shri..... Resident of..... to sell [foreign/country liquor] by retail in the Shops at..... as described in the Schedule I given below from..... to..... auctioned in a group of shops known as..... in consideration of an auction amount of Rs..... subject to the following conditions :-

Conditions

(1)

The shop shall be located at the place described in Schedule I annexed hereto. The site specified in the Schedule shall not be changed without previous sanction of the licensing authority.

[(1-A) In case of lack of adequate space in the approved premises of the shop for storage of [foreign/country liquor], the Licensing Authority may, on being satisfied about the need for additional storage space for [foreign/ country liquor], permit the licensee to store [foreign/country liquor] in a godown located in the vicinity of the approved premises of the shop. The description of such godown as may be approved by the licensing authority, shall be entered in Schedule I.]

(2)

The payment of auction amount shall be in accordance with Rule II-A of General Licence Condition Rules.

In case of default in the payment of the [fortnightly] instalment of auction amount, the Collector may in addition to taking action as provided in General Licence Condition Rule II-A, cancel the licence for such default Any loss of revenue consequent upon such cancellation shall be recoverable from the licensee as arrears of land revenue.

(3)

The licensee shall sell only those labels/brands of Foreign Liquor which are registered with the Excise Commissioner.

(4)

The licensee shall stock and sell [foreign/country liquor] in sealed bottles.

[(4-A) The licensee shall stock and sell all those labels/brands of foreign liquor which are popular and in demand in the local consumers. The Collector or the District Excise Officer may direct the licensee to keep such brands/labels of foreign liquor which are in his opinion in demand in the consumers or FL 2/FL 3 licensees and on being so directed the licensee shall forthwith comply with the directions given in this behalf.]

(5)

The licensee shall not sell and stock [foreign/country liquor] which is unfit for human consumption.

(6)

The licensee will obtain his supplies from [foreign liquor warehouse] ..... division only unless otherwise [x x x] permitted by the Excise Commissioner in this regard on prepayment of the prescribed duty and bottle fee.

[(6-A) The licensee shall procure his supplies of country liquor from a CS 2-A shop of the same group designated for the purpose by the licensing authority and shall not stock/sell country liquor procured for any other source.

(6-B) The licensee shall stock sufficient quantity of country liquor to meet local demand of the consumers. He shall transport country liquor to his licensed premises or additional godown from the shop designated under condition 6-A above on the authority of a permit in Form CS 4 to be granted by the circle Excise Sub-Inspector.

(6-C) The licensee shall purchase from customers empty bottles of country liquor, specially prepared for the excise department, which are in good condition, at the rate fixed by the Government and return them to the CS 2-A shop designated under condition No. 6-A above.

(6-D) The licensee shall not charge from the consumers on account of the cost of the bottle and sealing charges more than the rate fixed by the Government.

(6-E) The licensee shall affix in front of his shop a signboard in Hindi showing the selling rates of sealed bottles of country liquor, the sealing charges for glass bottles and the rates at which the empty glass bottle of 750, 375, 180 millilitres shall be repurchased.

(6-F) The licensee shall keep a correct account of daily transactions of empty bottles in the Form prescribed in condition No. 6 of CS 2-A licence.

(6-G) The licensee shall return all the empty bottles of country liquor in stock with him on the preceding date to the authorised agent of the designated CS 2-A shop whenever he goes for taking supply therefrom, obtain a receipt therefor and paste it in the register of empty bottles mentioned in condition No. 6-E above.]

(7)

The licensee shall not stock and sell [foreign/country liquor] on which the prescribed duty and bottle fee has not been prepaid.

[(8) The licensee shall maintain correct day-to-day label-wise account of all [foreign/country liquor] indicating clearly the stocks received and sold at the shop premises. In case the licensee has been permitted to store [foreign/country liquor] in a godown in addition to the approved shop premises under condition number (1-A) the licensee shall also maintain day-to-day label-wise correct account of stock of [foreign/country liquor] stored in such godown. Transportation of [foreign/country liquor] from the godown to the premises of the shop of the licensee shall be covered by a pass to be issued by an authorised officer not below the rank of Sub-Inspector Excise. The stock books maintained at the shop and the godown shall clearly show the transfer of [foreign/country liquor] between such godown and the shop. The licensee shall not conduct sale of [foreign/country liquor] from the godown.]

(9)

The licensee shall preserve all the relevant permits along with the invoices of foreign liquor in chronological sequence and produce them along with daily accounts register to the inspecting authorities on demand.

(10)

Consumption on the premises of [foreign/country liquor] sold under the licence is prohibited.

(11)

The licensee shall keep the shop closed and will not sell [foreign/ country liquor] on the days mentioned in Schedule II annexed to the licence.

(12)

The licensee shall be bound by General Licence Conditions except conditions XIII, XXVII and XXX.

(13)

On breach of any condition of this licence or provisions of Madhya Pradesh Excise Act, 1915 or rules made thereunder or orders issued by the Excise Commissioner, this licence may be suspended or cancelled by the Collector.

Date.....

(Collector)

District.....

SCHEDULE

Description of site

Boundaries of shop

North

East

West

South

(1)

(2)

(3)

(4)

(5)

SCHEDULE

[Form FL 1-AA ... Omitted]

[Form FL 1-AAA]

(An "On" licence under auction amount adjustment system for the retail sale of foreign liquor with permission to sell country liquor also to be consumed on the licensed premises). Under clause (aa-2) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 a licence is hereby granted to Shri..... resident of..... to sell foreign/country liquor by retail in the shop at..... as described in the Schedule I given below from..... to..... auctioned in a group of shops known as..... in consideration of an auction amount of Rs..... subject to the following conditions :-

Conditions

(1)

The shop shall be located at the place described in Schedule I appended hereto. The site specified in the Schedule shall not be changed without previous sanction of the licensing authority.

(2)

In case of lack of adequate space in the approved premises of the shop for storage of foreign/country liquor, the licensing authority may, on being satisfied about the need for additional storage space for foreign/country liquor, permit the licensee to store foreign/country liquor in a godown located in the vicinity of the approved premises of the shop. The description of such godown as may be approved by the licensing authority, shall be entered in Schedule I.

(3)

The payment of auction amount shall be in accordance with Rule II-A of General Licence Conditions Rules. In case of default in the payment of the [fortnightly] instalment of auction amount, the Collector may, in addition to taking action as provided in General Licence Condition Rule II-A, cancel the licence for such default. Any loss of revenue consequent upon such cancellation shall be recoverable from the licensee as arrears of land revenue.

(4)

The licensee shall sell only those labels/brands of foreign liquor which are registered with the Excise Commissioner.

(5)

The licensee shall stock and sell foreign/country liquor in sealed bottles. He shall not alter or tamper with seals, labels or caps on the bottles.

(6)

The licensee shall stock and sell all those labels/brands of foreign liquor which are popular and in demand in the local consumers. The Collector or the District Excise Officer may direct the licensee to keep such brands/labels of foreign liquor which are in his opinion in demand in the consumers or FL 2/FL 3 licensees and on being so directed the licensee shall forthwith comply with the direction given in this behalf.

(7)

The licensee shall not sell and stock foreign/country liquor, which is unfit for human consumption.

(8)

The licensee will obtain his supplies of foreign liquor from [foreign liquor warehouse] of..... division only unless otherwise [x x x] permitted by the Excise Commissioner in this regard on prepayment of the prescribed duty.

(9)

The licensee shall procure his supplies of country liquor from a CS 2-A shop of the same group designated for the purpose by the licensing authority and shall not stock/sell country liquor procured from any other source.

(10)

The licensee shall stock sufficient quantity of country liquor to meet local demand of consumers. He shall transport country liquor to his licensed premises or additional godown from the shop designated under condition No. 9 above on the authority of a permit in Form CS 4 to be granted by the circle Excise Sub-Inspector.

(11)

The licensee shall purchase from consumers empty bottles of country liquor specially prepared for the Excise Department that are in good condition at the rate fixed by the Government and return them to the CS 2-A shop designated under condition No. 9 above.

(12)

The licensee shall not charge from the consumers on account of the cost of the bottle and sealing charges more than the rate fixed by the Government.

(13)

The licensee shall affix in front of his shop a signboard in Hindi showing the selling rates of sealed bottles of country liquor, the sealing charges for glass bottles and the rates at which the country liquor empty glass bottles of 750, 375, 180 millilitres shall be repurchased.

(14)

The licensee shall keep a correct account of daily transaction of empty bottles of country liquor in the Form prescribed in condition No. 6 of CS 2-A licence.

(15)

The licensee shall return all the empty bottles of country liquor in stock with him on the preceding date to the authorised agent of the designated CS 2-A shop whenever he goes for taking supply therefrom, obtain a receipt therefore and paste it in the register of empty bottles mentioned in condition No. 13 above.

(16)

The licensee shall not stock and sell foreign/country liquor on which the prescribed duty has not been prepaid.

(17)

The licensee shall maintain correct day-to-day label-wise account of all foreign/country liquor indicating clearly the stock received and sold at the shop premises, in case the licensee has been permitted to stock foreign/ country liquor in a godown in addition to the approved shop premises under condition number 2, the licensee shall also maintain day-to-day label-wise correct account of stock of foreign/country liquor stored in such godown. Transportation of foreign/country liquor from the godown to the premises of the shop of the licensee shall be covered by a pass to be issued by an authorised officer not below the rank of Sub-Inspector, Excise. The stock books maintained at the shop and the additional godown shall clearly show the transfer, of foreign/country liquor between such godown and the shop. The licensee shall not conduct sale of foreign/country liquor from the additional godown.

(18)

The licensee shall preserve all the relevant permits alongwith the invoices of foreign liquor in chronological sequence and produce them alongwith daily accounts register to the inspecting authorities on demand.

(19)

Drinking of foreign/country liquor on the licensed premises is permitted to the purchaser to whom foreign/country liquor has been sold under this licence but drunkenness leading to disorderly and unruly behaviour by the consumer is prohibited.

(20)

The licensee shall keep the shop closed and will not sell foreign/country liquor on the days mentioned in Schedule 11 appended to the licence.

(21)

The licensee shall be bound by General Licence Conditions except condition XIII, XXV11 and XXX.

(22)

On breach of any condition of this licence or provision of Madhya Pradesh Excise Act, 1915 or rule made thereunder or order issued by the Excise Commissioner, this licence may be suspended or cancelled by the Collector.

Date.....

Collector

District.....

#### SCHEDULE

Description of site

Boundaries of the shop

North

East

West

South

(1)

(2)

(3)

(4)

(5)

#### SCHEDULE

[Form FL 1-AAAA]

Licence for the Retail Sale of Foreign Liquor

Under clause (a) of sub-rule (1) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996 and in consideration of an annual licence fee of Rs..... this licence is hereby granted to..... to sell foreign liquor in retail at the licensed premises situated in..... in the town/village..... District..... from..... to..... subject to the following conditions, namely :-

Conditions

1. The shop shall be established at the premises approved by the licensing authority as indicated in the Schedule I below and the site shall not be changed without previous permission of the licensing authority.

2. Foreign Liquor shall be stocked and sold in sealed bottles only.

3. The licensee shall not sell or have in his stock Foreign Liquor which is unfit for human consumption.
4. The minimum quantity of spirit which shall be brought for sale from..... is fixed as below :-  
Minimum quantity in P.L./B.L.  
Yearly                      Fortnightly  
Spirit
5. Consumption of liquor in the premises is allowed.
6. The licensee shall preserve all the permits and invoices of stocks received in proper order and produce them before the inspecting authorities.
7. The licensee shall maintain day-to-day true account of all the quantity of foreign liquor received, stocked and sold.
8. The licensee shall purchase foreign liquor from..... warehouse.
9. The licensee shall stock and sell only that foreign liquor on which duty has been paid.
10. The licensee is bound by the General licence conditions except conditions II-A and XIII.
11. The licensee shall keep the shop closed on such dry days as are specified in Schedule-II.
12. On breach of any condition of this licence or the provisions of the Madhya Pradesh Excise Act, 1915 and the rules made thereunder or order issued by the Excise Commissioner, this licence may be suspended or cancelled by the licensing authority.

Date.....

Collector

#### SCHEDULE

Description of site

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

#### SCHEDULE

List of dry days

Form FL 1-B

Under Clause (aaa) of sub-rule (1) of Rule 8 of Foreign Liquor Rules, 1996, and in consideration of Rs..... as fee which has been paid in advance, Shri..... holder of [FL 1] Licence for..... is permitted to allow consumption of [foreign liquor] in the Ahata (Enclosure)/ described in Schedule I given below from..... to..... subject to the following conditions :-

Conditions

(1)

The licensee will permit consumption of [foreign liquor] in the Ahata (enclosure) described in Schedule I.

(2)

The licensee shall in no circumstances change the site specified in the schedule without previous permission of the licensing authority.

(3)

The licensee shall allow the consumption in the Ahata only of that [foreign liquor] which has been sold from his licensed shop at..... to which the Ahata is attached.

(4)

The licensee shall not permit consumption of [x x x] intoxicating drugs in the licensed premises.

(5)

The licensee shall neither stock nor sell [foreign liquor] from the licensed premises under this licence.

(6)

The licensee may provide reasonable facilities to the consumers but shall not permit singing, dancing, rowdy or unruly behaviour.

(7)

In case the [FL 1] licence, to which the Ahata under this licence is attached, is suspended, cancelled or withdrawn by the Collector, this Ahata licence shall also be deemed to have been suspended, cancelled or withdrawn, as the case may be, forthwith.

(8)

The licensee shall keep the Ahata closed on the days mentioned in Schedule II annexed to this licence.

(9)

The licensee shall be bound by General Licence Conditions except conditions II, XIII, XXVII and XXX.

(10)

On breach of any condition of this licence or provisions of Madhya Pradesh Excise Act, 1915 or rules made thereunder or orders issued by the Excise Commissioner, thus licence may be suspended or cancelled by the Collector.

Date.....

(Collector)

District.....

#### SCHEDULE

(Showing Details of Ahata Boundaries)

Description of site

Boundaries of the licensed Ahata

North

East

West

South

(1)

(2)

(3)

(4)

(5)

(Collector)

District.....

#### SCHEDULE

[Form FL 1-C....Omitted]

[Form FL 1-D]

Under clause (aaaa) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 and in consideration of an amount of Rs..... as fee which has been paid in advance by Shri..... is hereby permitted to sell beer in sealed bottles/containers from licensed premises from..... to..... subject to the following conditions :-

Conditions

(1)

The shop shall be located at the place described in the Schedule I. The site specified shall not be changed without previous sanction of the licensing authority.

(2)

The licensee shall sell only beer and shall not sell any liquor other than beer.

(3)

The licensee shall sell only those Labels of Beer which are registered by the Excise Commissioner, Madhya Pradesh.

(4)

The licensee shall not stock and sell beer on which the prescribed duty and bottle fee, if any, has not been prepaid.

(5)

The licensee shall not sell and stock Beer which is unfit for human consumption.

[(6) If the foreign/country liquor contractor/licensee, in whose favour this licence has been granted independently, ceases to be the liquor contractor/ licensee of the area, this licence shall also cease to be in force.

(6-a) Consumption of beer on the licensed premises is prohibited however beer sold under this licence may be consumed thereat if this licence has been granted as an adjunct to an F.L. 1 AAA or C.S. 2A licence.]

(7)

Consumption Beer on the licensed premises is prohibited.

(8)

The licensee shall obtain beer from any [foreign liquor warehouse] of..... division only, or of any other division if specifically permitted by the Excise Commissioner due to non-availability of the particular/specific brands/labels in the [foreign liquor warehouse] of the division, after prepaying prescribed duty and bottle fee, if any.

(9)

The licensee shall maintain day to day true accounts of all the beer received, sold and stocked.

(10)

The licensee shall preserve all the permits and invoices of stocks received, in proper order and produce them before the authorised officer for inspection.

(11)

The shop under the licensee shall remain open from 10 a.m. to 10.30 p.m. throughout the year.

(12)

The licensee shall keep the shop closed and will not sell beer on the days mentioned in Schedule II annexed to this licence.

(13)

The licensee is bound by General Licence Conditions except conditions II, XIII, XXVII and XXX.

(14)

In case the F.L. 1A or any other licence to which this licensee is in an adjunct is suspended, cancelled or withdrawn by the Collector/Licensing Authority, this licence shall also be deemed to have been suspended, cancelled or withdrawn, as the case may be, forthwith.

(15)

On breach of any condition of this licence or provisions of Madhya Pradesh Excise Act, 1915 or rules made thereunder or orders issued by the Excise Commissioner, this licence may be suspended or cancelled by the licensing authority.

Date.....

Licensing Authority

SCHEDULE

Description of site

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

SCHEDULE

List of Dry Days

.....

.....

.....

.....

.....

Form FL 2

(Restaurant Bar Licence)

Under Clause (b) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 and in consideration of Rs..... which has

been paid in advance, licence is hereby granted to Shri..... Resident of..... to sell[foreign liquor] from open bottles with meals or snacks at the licensed premises of the restaurant described in the Schedule below and situated in..... in the town of from..... to subject to the following conditions :-

Conditions

(1)

The licensee shall purchase foreign liquor from such [FL 1-A, [x x x], FL 1-AAA] or [F.L. 1D] licensees of the district as may be specified by the Collector.

(2)

The [foreign liquor] sold under this licence must be consumed on the premises.

(3)

The licensee shall sell only loose [foreign liquor] from open bottles with meals or snacks.

(4)

The licensee shall not stock and sell [foreign liquor] which is unfit for human consumption.

(5)

The licensee shall preserve all the permits and invoices of stocks received in proper order and produce them before the authorised officer for inspection.

(6)

The licensee shall maintain day-to-day true account of all the [foreign liquor] received, stocked and sold.

[(7) Omitted]

[(7-A) The licensee shall not stock more than 240 quart bottles or spirit and 600 bottles of beer at any time.]

(8)

The licensee is bound by General Licence Conditions except condition II, XXVII and XXX.

[(8-A) In case the licences in Form F.L. 1A, F.L. 1AAA, F.L. 1D, C.S. 2A, C.S. 2B granted to existing country/foreign liquor licensee for the..... group of shops are suspended, cancelled or withdrawn by the Collector, this licence shall also be deemed to have been suspended, cancelled or withdrawn forthwith.]

(9)

On breach of any condition of this licence or provisions of Madhya Pradesh Excise Act, 1915 or rules made thereunder or orders issued by the Excise Commissioner, this licence may be suspended or cancelled by the Licensing Authority.

Date.....

Licensing Authority

SCHEDULE

Description of site

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

Form FL 3

Hotel Bar Licence

Under Clause (c) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 and in consideration of licence fee of Rs..... which has been paid in advance, licence is hereby granted to..... to sell foreign liquor from open bottles at the hotel situated in..... street in the town of..... the boundaries of which are described in the schedule annexed hereto from..... to..... subject to the following conditions :-

Conditions

(1)

The licensee shall purchase foreign liquor from such [FL 1-A, [x x x], FL 1-AAA] or [F.L. 1D] licensees of the district as



may be specified by the Collector.

(2)

Foreign liquor shall be sold to residents in the hotel or to their guests and to the visitors going to the restaurant of the hotel with meals or snacks. The foreign liquor sold under this licence must be consumed on the premises.

(3)

The licensee shall sell only loose foreign liquor from open bottles.

[(4) Omitted]

(5)

The licensee shall not stock and sell foreign liquor which is unfit for human consumption.

(6)

All foreign liquor other than malt liquor, shall be stocked in sealed bottles, each containing at least 750 millilitres, except the ones that have been opened for sale. Possession of sealed bottles or empties of less than 750 millilitres capacity is prohibited.

[(6-a) The licensee shall not stock more than 240 quart bottles of spirit and 480 bottles of beer at any time :]

[Provided that the Excise Commissioner may having regard to the class or standard of the hotel and number as also occupancy of the rooms, permit possession of stock of foreign liquor including beer in excess of the above quantity.]

(7)

The licensee shall preserve all the permits and invoices of stocks received in proper order and produce them before the authorised officers for inspection.

(8)

The licensee shall maintain day-to-day true account of all foreign liquor received, stocked and sold.

(9)

The licensee is bound by General Licence Condition except condition II, XXVII and XXX.

(10)

On breach of any condition of this licence or provision of Madhya Pradesh Excise Act, 1915 or rules made thereunder or orders issued by the Excise Commissioner, this licence may be suspended or cancelled by the Licensing Authority.

Date.....

Licensing Authority

#### SCHEDULE

(Schedule Showing the licensed premises)

Description of site

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

Licensing Authority

Form FL 4

Licence for possession and sale of foreign liquor by a club run by civilians

Under Clause (d) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 and in consideration of a licence fee of Rs..... which has been paid in advance, this licence is hereby granted to..... club at..... in the district of..... their boundaries of which are described in the schedule to sell foreign liquor from open bottles to its bonafide members from..... to.....subject to the following conditions :-

Conditions

(1)

The licensee shall purchase foreign liquor from such [FL 1-A [x x x], FL 1-AAA] or [F.L. 1D] licensees of the district as

may be specified by the Collector.

(2)

Foreign liquor shall be sold only to and consumed by the bonafide members of the club and their guests on the licensed premises.

(3)

The licensee shall not sell and stock foreign liquor which is unfit for human consumption.

(4)

The maximum quantity that may be possessed at a time under this licence shall be quart bottles of spirit and quart bottles of malt liquor.

(5)

All foreign liquor other than malt liquor shall be stocked in sealed bottles, each containing at least 750 millilitres, except the ones that have been opened for sale. Possession of sealed bottles or empties of less than 750 millilitres capacity is prohibited.

(6)

The licensee shall sell only loose foreign liquor from bottles.

(7)

The licensee shall preserve all the permits and invoices of stocks received in proper order and produce them for inspection whenever required by the inspecting authorities.

(8)

The licensee shall maintain day-to-day true account of foreign liquor received, stocked and sold.

(9)

The licensee shall be responsible for the due observance of the licence conditions and shall prepare, produce and submit the required accounts, returns for inspection whenever demanded by any Excise Officer.

(10)

The licensee is bound by General Licence Conditions except conditions 11, XXVII and XXX.

(11)

On breach of any condition of this licence or provisions of the Madhya Pradesh Excise Act, 1915 or rules made thereunder or orders issued by the Excise Commissioner, this licence may be suspended or cancelled by the Licensing Authority.

Date.....

Excise Commissioner, Madhya Pradesh

#### SCHEDULE

(Schedule Showing the licensed premises)

Description of site

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

[Form FL 4-A]

Licence for possession and sale of foreign liquor in the premises of a commercial club

Under Clause (dd) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 and in consideration of a licence fee of Rs..... which has been paid in advance, this licence is hereby granted to..... for..... club run by it at..... in the district of..... the boundaries of which are described in the schedule, to sell foreign liquor from open bottles to bonafide members of the club or their guests from..... to..... subject to the following conditions :-

Conditions

(1)

The licensee shall purchase foreign liquor from such [FL 1-A [x x x], FL 1-AAA] or [F.L. 1D]. Be it enacted by the Madhya Pradesh Legislature in the licensee of the district as may be specified by the Collector.

(2)

Foreign liquor shall be sold only to and consumed by the members of the club and their guests when accompanied by the member of the club at the licensed premises.

(3)

The licensee shall not sell and stock foreign liquor which is unfit for human consumption.

(4)

The maximum quantity that may be possessed at a time under this licence shall be quart bottles of spirit and quart bottles of malt liquor.

(5)

All foreign liquor other than malt liquor shall be stocked in sealed bottles, each containing at least 750 millilitres except the ones that have been opened for sale. Possession of sealed bottles or empties of less than 750 millilitres capacity is prohibited.

(6)

The licensee shall sell only loose foreign liquor from bottles to the members of the club or their guests.

(7)

The licensee shall preserve all the permits and invoices of stocks received in proper order and produce them for inspection whenever required by the inspecting authorities.

(8)

The licensee shall maintain day-to-day true account of foreign liquor received, stocked and sold.

(9)

The licensee shall be responsible for the due observance of the licence conditions and shall prepare and produce the required accounts, returns for inspection whenever demanded by any Excise Officer.

(10)

The licensee is bound by General Licence Conditions except conditions II, XXVII and XXX.

(11)

On breach of any condition of this licence or provisions of the Madhya Pradesh Excise Act, 1915 or rules made thereunder or orders issued by the Excise Commissioner, this licence may be suspended or cancelled by the Licensing Authority.

Date.....

Excise Commissioner, Madhya Pradesh

#### SCHEDULE

(Schedule Showing the licensed premises)

Description of site

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

Form FL 5

Occasional Licence

Under Clause (e) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 and in consideration of licence fee of Rs..... which has been paid in advance, licence is hereby granted to..... to sell foreign liquor in retail from open bottles at the licensed premises described in the schedule below from..... to..... both days inclusive, subject to the

following conditions :-

Conditions

(1)

The licensee shall purchase foreign liquor from such [FL 1-A [x x x], FL 1-AAA] or [F.L. 1D] licensees of the district as may be specified by the Collector.

(2)

The licence permits sale of loose foreign liquor for consumption on the premises.

(3)

The licensee shall not sell and stock foreign liquor which is unfit for human consumption.

(4)

The maximum quantity that may be possessed at a time under this licence shall be as fixed by the District Excise Officer.

(5)

All foreign liquor other than malt liquor shall be stocked in sealed bottles, each containing at least 750 millilitres, except the ones that have been opened for sale. Possession of sealed bottles or empties of smaller size is prohibited.

(6)

The licensee shall preserve all the permits and invoices of stocks received in proper order and produce them for inspection.

(7)

The licensee shall maintain day-to-day true account of all foreign liquor received, stocked and sold.

(8)

Sale under this licence may be made from..... a.m./p.m. to..... a.m./p.m.

(9)

The licensee shall be personally responsible for the due observance of the licence conditions.

(10)

The licensee shall submit a return incorporating all the relevant details about purchase, sales, balance etc. within 3 days of the expiry of the licence.

(11)

The licensee is bound by General Licence Conditions except conditions II, XVI, XXVII, XXIX and XXX.

(12)

On breach of any condition of this licence or provisions of the Madhya Pradesh Excise Act, 1915 or rules made thereunder or orders issued by the Excise Commissioner, this licence may be suspended or cancelled by the Licensing Authority.

Date.....

(Collector)

District.....

SCHEDULE

(Schedule Showing the licensed premises)

Description of site

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

Form FL 6

Military Canteen Wholesale Licence

Under Clause (f) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 and in consideration of licence fee of Rs..... which has been paid in advance, licence is hereby granted to..... to sell foreign liquor in wholesale from the licensed premises situated in the town of..... in the district of..... and described in the schedule below from..... to..... subject to the following conditions :-

Conditions

(1)

The licensee shall procure its/his requirements either by purchases from [FL 9, FL 9-A or FL 10-A]licensee or by importation, after paying the prescribed fee.

(2)

The licensee shall sell foreign liquor only to FL 7 or FL 8 licensees.

(3)

The licensee shall preserve all the permits and invoices of stocks received in proper order and produce them before the inspecting authorities whenever directed.

(4)

Cartons containing Whisky, Rum, Brandy, Gin, Beer etc. shall be arranged, stocked and stacked separate from one another.

(5)

The licensee shall leave an accessible passage free of packages in the middle as well as along the walls of the store-room to facilitate free movement and verification of foreign liquor.

(6)

The licensee shall maintain day-to-day true account of all the foreign liquor received stocked and sold.

(7)

The licensee shall be bound by the General Licence Conditions except condition II, XIII, XVI, XXV, XXVI, XXVII, XXX and XXXII.

(8)

On breach of any condition of this licence or provision of the Excise Act, 1915 or rules made thereunder or order issued by the Excise Commissioner, this licence may be suspended or cancelled by the Licensing Authority.

Date.....

(Collector)

District.....

SCHEDULE

(Schedule Showing the licensed premises)

Description of site

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

Form FL 7

Military Canteen Retail Licence

Under Clause (g) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 and in consideration of a licence fee of Rs..... which has been paid in advance, licence is hereby granted to..... to sell foreign liquor in retail at the canteen attached to..... and described in the schedule below in the town of..... district of..... from..... to..... subject to the following conditions :-

Conditions

(1)

The licensee shall purchase foreign liquor from FL 6 licensee after paying duty and bottle fee at the prescribed rate.

(2)

The licensee shall sell foreign liquor only to persons duly authorised under the relevant regulations to use services of this canteen.

(3)

The licensee shall not sell or stock foreign liquor which is unfit for human consumption.

(4)

The licensee shall effect the sales only at the licensed premises of the canteen and under no circumstances sell foreign liquor at any other place or establish another place for sale, provided that he may establish a second place of sale without taking a separate licence when a portion of a regiment is detached from it for training or for any other purpose.

(5)

The licensee shall preserve all the permits and invoices of stocks received for production before the inspecting authorities.

(6)

The licensee shall maintain day-to-day true account of all foreign liquor received, stocked and sold.

(7)

The licensee shall be bound by all the General Licence Conditions except conditions II, XIII, XXVII and XXX.

(8)

On breach of any condition of this licence or provisions of Madhya Pradesh Excise Act, 1915 or rules made thereunder or order issued by the Excise Commissioner, this licence may be suspended or cancelled by the Licensing Authority.

Date.....

(Collector)

District.....

#### SCHEDULE

Description of site

Description of site

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

Form FL 8

Licence for possession of foreign liquor by a club or mess run by military/paramilitary forces

Under Clause (b) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 and in consideration of a licence fee of Rs..... which has been paid in advance, licence is hereby granted to the boundaries of which are described in the schedule, mess or club, at..... in the district of ..... to sell foreign liquor to its bonafide members from..... to..... subject to the following conditions :-

Conditions

(1)

The licensee shall purchase foreign liquor from FL 6 or FL 7 licensee after paying duty and bottle fee or transport fee as the case may be, at the prescribed rate.

(2)

Foreign liquor shall be sold only to and consumed by the bonafide members of the club or mess or their guests on the licensed premises.

(3)

The licensee shall not sell or stock any foreign liquor which is unfit for human consumption.

(4)

The licensee shall preserve all the permits and invoices of Stocks received in proper order and produce them for inspection whenever required.

(5)

The licensee shall maintain day-to-day true account of all foreign liquor received, stocked and sold.

(6)

The licensee shall be responsible for the due observance of the licence conditions and shall prepare, produce and submit the required accounts or returns for inspection whenever demanded by any Excise Officer.

(7)

The licensee shall be bound by all the General Licence Conditions except conditions II, XVI, XXVII, XXIX and XXX.

(8)

On breach of any condition of this licence or provisions of Madhya Pradesh Excise Act, 1915 or rules made thereunder or order issued by the Excise Commissioner, this licence may be suspended or cancelled by the Licensing Authority.

Date.....

(Collector)

District.....

#### SCHEDULE

Description of site

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

Form FL 9

Bottling Licence

Under Clause (i) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 and in consideration of licence fee of Rs..... which has already been paid, this licence is hereby granted to..... for manufacturing and bottling foreign liquor at the premises described in the schedule below and situated in..... town of..... district..... from..... to..... subject to the following conditions :-

Conditions

(1)

All operations relating to manufacture and bottling shall be conducted at the licensed premises situated at..... as per the map and plan approved by the Excise Commissioner and enclosed with this licence.

(2)

The licensee shall pay the bottling fee per bottle at the prescribed rate.

(3)

The licensee shall not effect bottling or manufacturing operations without prior notice, incorporating the relevant details, to the office-in-charge.

(4)

The licensee shall procure spirit for manufacturing foreign liquor from a D-I licensee or by importation as per the terms and conditions incorporated in the permission granted for the purpose after payment of the prescribed fee.

(5)

All foreign liquor manufactured in one operation shall be given the same batch number and shall be bottled, sealed and labelled immediately.

(6)

The licensee shall use only such labels as are registered with the Excise Commissioner. The labels pasted on the

bottles shall specify the details given in sub-rule (1) of Rule 9 of the Foreign Liquor Rules.

(7)

The licensee shall use only clean and potable water in the process of manufacture.

(8)

The licensee shall not use any ingredient deleterious or injurious to health in the manufacture of foreign liquor.

(9)

Cartons containing Whisky, Brandy, Rum, Gin, Beer etc. shall be arranged stocked and stacked labelwise and bottle size-wise separate from one another.

(10)

The licensee shall leave an accessible passage free of packages containing foreign liquor in the middle as well as along the walls of the store rooms to facilitate free movements and verification of the stock.

(11)

The licensee shall maintain day-to-day labelwise true account of foreign liquor manufactured and sold.

(12)

The licensee shall be bound by the General Licence Conditions except condition II, VIII, XIV, XVI, XXV, XXVI, XXVII, XXIX and XXXII.

(13)

On breach of any condition of this licence or provision of Excise Act, 1915 or rules made thereunder or order issued by the Excise Commissioner, the licence may be cancelled or suspended by the Licensing Authority.

Date.....

Excise Commissioner, Madhya Pradesh

#### SCHEDULE

Description of site

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

Form FL 9-A

[Special Bottling Licence]

Under Clause (j) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 and in consideration of an annual licence fee of Rs..... that has been paid, this special licence is granted to..... for manufacturing and bottling foreign liquor at the premises described in Schedule I below situated at..... in town of..... district..... from..... to..... subject to the following conditions :-

Conditions

(1)

The licensee shall pay the bottling fee according to the prescribed rate.

[(2) The licensee shall manufacture/bottle only those labels/brands that are specified or listed in Schedule II annexed to this licence and for which he has been duly and specially franchised/authorised by the owner of such labels/brands or the labels, brands belong to or are owned by the licensee himself and foreign liquor of the labels or brands listed in Schedule II was or is already being manufactured anywhere outside Madhya Pradesh.]

(3)

All operations relating to manufacture and bottling of the brands listed in Schedule II shall be conducted at the licensed premises situated at..... as per the map and plan approved by the Excise Commissioner and enclosed with this licence.

(4)



The labels pasted on the bottles shall specify all the details mentioned in Rule 9(1) of the Foreign Liquor Rules.

(5)

The licensee shall not effect any manufacturing/bottling operation without prior intimation, well-in advance, incorporating all the relevant details, to the office-in-charge.

(6)

Only potable water shall be used in the process of manufacture. The plant, machinery and premises shall be kept reasonably clean.

(7)

No ingredient deleterious or injurious to health shall be used in manufacturing/bottling process.

[(8) The licensee may procure spirit/Beer from any D-1/ B-1-A licensee of Madhya Pradesh or may be permitted to import spirit/beer by the Excise Commissioner for manufacturing the scheduled brands of Foreign Liquor including beer. He may also be permitted to import specially blended/ flavoured spirits/beer for belonging purposes.]

(9)

All foreign liquor manufactured in one operation shall be bottled and labelled immediately and shall be given the same batch number.

(10)

Cartons containing Whisky, Brandy, Rum, Gin, Beer etc. shall be arranged stocked and stacked label-wise and bottle-size-wise, separate from one another.

(11)

The licensee shall leave an accessible passage free of packages containing foreign liquor in the middle as well as along the walls of the stock rooms to facilitate free movements and verification of the stock.

(12)

The licensee shall maintain day-to-day label-wise true account of foreign liquor manufactured, bottled and disposed of. He will also maintain an accurate account of [spirit/beer] used.

(13)

He shall comply with any subsidiary instructions issued by the Excise Commissioner from time to time during the currency of this licence.

(14)

If [D-1, F.L. 9 or B-1-A] licence to which this licence has been granted as an adjunct stands suspended, cancelled or withdrawn, this licence shall automatically stand suspended/cancelled/withdrawn or discontinued as the case may be.

(15)

The licensee shall be bound by the General Licence Conditions except conditions No. II, VIII, XIV, XVI, XXV, XXVI, XXVII, XXIX and XXXII.

(16)

On breach of any condition of this licence or provisions of Madhya Pradesh Excise Act, 1915 or rules made thereunder or order issued by the Excise Commissioner, this licence may be suspended or cancelled by the Licensing Authority.

Date.....

Excise Commissioner, Madhya Pradesh.

Schedule I

Description of the licensed premises

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

Schedule II

S. No.

Details of the brand/brands for which the licensee holds franchise

Full particulars alongwith complete address of the franchiser

(1)

(2)

(3)

[Form FL 10....Omitted]

[Form FL 10-A]

(Outside Manufacturer's Central Godown Licence)

Under Clause (k-1) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 and in consideration of a licence fee of Rs..... which has already been paid, licence is hereby granted to..... to sell foreign liquor in wholesale from the licensed premises at, as described in the Schedule I below and situated in..... town of..... district..... from..... to subject to the following conditions :-

Conditions

(1)

The licensee shall procure his requirement by importation only.

(2)

Under this licence only those labels or brands of foreign liquor shall be imported which have been manufactured and bottled outside Madhya Pradesh by the licensee himself and which have been registered with the Excise Commissioner, Madhya Pradesh under Rule 9 of these rules.

(3)

The licensee shall sell his stock to an FL 6 or FL 10 licensee only.

(4)

He shall import foreign liquor manufactured by him after payment of the prescribed import fee.

(5)

The licensee shall preserve all the permits and invoices of stocks imported in proper order and produce them before the inspecting authorities.

(6)

Cartons containing Whisky, Brandy, Rum, Gin, Beer etc. shall be arranged, stocked and stacked labelwise, bottle-size-wise, separate from one another.

(7)

The licensee shall leave an accessible passage free of packages containing foreign liquor in the middle as well as along the walls of the store room to facilitate free movement and verification of the stock.

(8)

The licensee shall conduct business from the licensed premises only. No addition to or alteration in the premises is allowed without the prior written permission of the Excise Commissioner.

(9)

The licensee shall maintain day-to-day label-wise and bottle-size-wise true account of all foreign liquor imported, stocked and sold.

(10)

The licensee shall be bound by all the General Licence Conditions except conditions II, X, XIV, XVI, XXV, XXVI, XXVII and XXXII.

(11)

On breach of any condition of this licence or provisions of Madhya Pradesh Excise Act, 1915 or rules made thereunder or order issued by the Excise Commissioner, this licence may be cancelled or suspended by the Licensing Authority.

Date.....

Excise Commissioner, Madhya Pradesh.

Schedule I

Description of site

Boundaries of the licensed premises

North

East  
West  
South

- (1)
- (2)
- (3)
- (4)
- (5)

Schedule II

Full particulars alongwith complete address of the manufacturer/bottler

The nature of licence held by such manufacturer/bottler

The province in which he holds the licence mentioned in column 2

- (1)
- (2)
- (3)

Form FL 11

(Licence for Wholesale Sale of Duty Paid Foreign Liquor)

Under Clause (1) of sub-rule (1) of Rule 8 of the Foreign Liquor Rules, 1996 and in consideration of an annual licence fee of Rs..... which has already been paid, this licence is granted to..... to sell foreign liquor in wholesale from the licensed premises of the warehouse situated at..... from..... to..... and specified in the schedule below subject to the following conditions :-

Conditions

- (1)

The licensee shall purchase foreign liquor only from [FL 9, FL 9-A or FL 10-A] licensees after paying prescribed duty and fee.

- (2)

The licensee shall sell foreign liquor only to licensees and persons as directed by the Excise Commissioner.

- (3)

All sales shall be covered by a transport permit issued by a competent authority.

- (4)

The licensee shall conduct business from the licensed premises only. No addition to or alteration in such warehouse, premises is permissible without the written permission of the Excise Commissioner.

- (5)

Cartons containing Whisky, Brandy, Rum, Gin, Beer etc. shall be arranged, stocked and stacked labelwise, separate from one another.

- (6)

The licensee shall leave an accessible passage free of cartons, containing foreign liquor in the middle as well as along the walls to facilitate free movement and verification of the stock.

- (7)

The licensee shall preserve all the permits and invoices of stocks received in proper order and produce them before the inspecting authorities.

- (8)

The licensee shall maintain day-to-day true account relating to receipts, sales and stocks of foreign liquor, label-wise.

- (9)

Sales from the warehouse shall be conducted between..... a.m. to..... p.m. only.

- (10)

The licensee shall be bound by all the General Licence Conditions except condition II, X, XIII, XIV, XVI, XXV, XXVI, XXVII and XXXII.

- (11)

On breach of any condition of this licence or provisions of Madhya Pradesh Excise Act, 1915 or rules made thereunder or order issued by the Excise Commissioner, this licence may be suspended or cancelled by the Licensing Authority.

Date.....

Excise Commissioner, Madhya Pradesh.

Schedule I

Description of site

Boundaries of the licensed premises

North

East

West

South

(1)

(2)

(3)

(4)

(5)

[Form F.L 12]

[See Rule 14 (1)]

No Objection Certificate

No.....

Date.....

(In triplicate)

Part I ? To be retained in the office of issue for record.

Part II ? For the licensee who shall transport I.M.F.L. to 'Foreign Liquor Warehouse' .....

Part III ? For the Officer, who shall issue transport permit, for his record.

To,

The Officer-in-Charge ..... F.L.9/F.L.9A/F.L.10A/B-1-A licence .....

Mr/Messrs..... holder of F.L. 9/F.L. 9A/F.L. 10A/B-1-A licence in/at....., desire/desires to transport I.M.F.L. detailed overleaf to this 'Foreign Liquor Warehouse' at /in..... and has/have deposited Rs. 25 (twenty five) by challan No..... dated..... in this district as transport fee. This office has no objection if a transport permit, for transportation of the said quantity of I.M.F.L. given on the reverse, is issued by you. This No Objection Certificate shall remain valid upto.....

Officer-in-charge 'Foreign Liquor Warehouse' .....(M.P.)

Date.....

Reverse of Form F.L.12

(Details of I.M.F.L. for which this No Objection Certificate has been issued)

Sl. No.

Kind of I.M.F.L.

Bulk litres

Proof litres

(1)

(2)

(3)

(4)

1

Spirit (Whisky, Rum, Gin, Brandy)

2

Wine

3

Beer Ale, Porter, Cider

4

.....

5

Total  
Officer-in-charge 'Foreign Liquor Warehouse' .....(M.P.)  
Date.....  
[Form F.L 12A]  
[See Rule 14(2)]  
No Objection Certificate  
No.....  
Date.....  
(In triplicate)  
Part I ? To be retained in the office of issue for record.  
Part II ? To be handed over to the purchasing licensee.  
Part III ? To be mailed to the officer who shall issue the transport permit.  
To  
The Officer-in-Charge 'Foreign Liquor Warehouse' .....  
Mr./Messrs..... holding an F.L. 1A/F.L. 1AAA/F.L. 1D licence in this district intend/intends to transport I.M.F.L. detailed overleaf from Foreign Liquor Warehouse'..... to his/their licensed premises at/in..... He/they have deposited Rs..... by challan No..... dated..... in this district towards duty. This office has no objection if a transport permit for the required quantity detailed on the reverse is issued by you. This No Objection Certificate shall remain valid upto.....  
Assistant Excise Commissioner/ District Excise Officer, .....(M.P.)  
Date.....  
Reverse of Form F.L. 12A  
(Details of I.M.F.L. for which this No Objection Certificate is issued)  
Sl. No.  
Kind of I.M.F.L.  
Bulk litres  
Proof litres  
(1)  
(2)  
(3)  
(4)  
1  
Spirit (Whisky, Rum, Gin, Brandy)  
2  
Wine  
3  
Beer Ale, Porter, Cider  
4  
.....  
5  
Total  
Assistant Excise Commissioner/ District Excise Officer, .....(M.P.)  
Date.....  
[Form F.L. 13]  
[See Rule 14 (5)]  
No Objection Certificate  
No.....  
Date.....  
(In triplicate)  
Part I ? To be retained in the office of issue for record.  
Part II ? To be handed over to the purchasing licensee.

Part III ? To be mailed to the officer who shall issue the transport permit.

To,

The Officer-in-Charge ..... F.L. 9/F.L. 9A/F.L. 10A/B-1-A licence .....M.P.

..... holding F.L.6 license in this district, intend to transport to their licensed premises at..... I.M.F.L., details whereof are given overleaf, from..... an F.L. 9/F.L. 9A/F.L. 10A/B-1-A licensee of..... and have deposited in this district Rs. 25 (twenty five) towards transport fee by challan No..... dated..... This office has no objection if a transport permit for the requisitioned quantity detailed on the reverse is issued by you. This No Objection Certificate shall remain valid upto.....

Assistant Excise Commissioner/ District Excise Officer, .....(M.P.)

Date.....

Reverse of Form F.L. 13

(Details of I.M.F.L. for which this No Objection Certificate is issued)

Sl. No.

Kind of I.M.F.L.

Bulk litres

Proof litres

(1)

(2)

(3)

(4)

1

Spirit (Whisky, Rum, Gin, Brandy)

2

Wine

3

Beer Ale, Porter, Cider

4

.....

5

Total

Assistant Excise Commissioner/ District Excise Officer, .....(M.P.)

Date.....

[Form F.L 13A]

[See Rule 14 (6)]

No Objection Certificate

No.....

Date.....

(In triplicate)

Part I ? To be retained in the office of issue for record.

Part II ? To be handed over to the purchasing licensee.

Part III ? To be mailed to the officer who shall issue the transport permit.

To,

Assistant Excise Commissioner/ District Excise Officer .....M.P.

.....holding F.L. 3/F.L. 7/F.L. 8 licence in this district, intends/ intend to transport foreign liquor, detailed overleaf to his/their licensed premises at..... from..... an F.L. 1A, F.L. 1AAA/F.L. 1D/F.L. 6/F.L. 7 licensee of your district. Duty/bottle fee/transport fee payable under the Rules has/have been deposited in this district as per details given below. This office has no objection if a transport permit for the required quantity detailed on the reverse is issued by you. This No Objection Certificate shall remain valid upto.....

Details of Deposit

Sl. No.

Head

Amount

Chllan No. and Date

(1)

(2)

(3)

(4)

1

Duty

2

Bottle fee

3

Transport Fee

Assistant Excise Commissioner/ District Excise Officer, .....(M.P.)

Date.....

Reverse of Form F.L. 13A

(Details of foreign liquor for which this No Objection Certificate is issued)

Sl. No.

Kind of I.M.F.L.

Bulk litres

Proof litres

(1)

(2)

(3)

(4)

1

Spirit (Whisky, Rum, Gin, Brandy)

2

Wine

3

Beer Ale, Porter, Cider

4

.....

5

Total

Assistant Excise Commissioner/ District Excise Officer, .....(M.P.)

[Form F.L 14]

[See Rule 14(1)]

Transport Permit

No.....

Date.....

(In triplicate)

Part I ? To be retained in the office of issue.

Part II ? For the licensee transporting I.M.F.L. to 'Foreign liquor warehouse' for his records.

Part III ? This part shall cover the consignment during transit and the officer-in-charge, 'foreign liquor warehouse', after recording verification note on to keep it in his office records.

Against the No Objection Certificate No..... dated..... issued by Officer-in-charge 'Foreign Liquor Warehouse'..... this transport permit is granted to Mr./Messrs holding F.L.9/F.L. 9A/F.L. 10A /B-1-A licence, to transport..... proof/bulk litres of I.M.F.L., details whereof are given overleaf, from his/their licensed premises at..... to 'Foreign Liquor Warehouse'..... This permit holder has deposited Rs. 25 (twenty five) by challan No..... dated.....as transport fee in..... district. This permit shall be valid upto.....

Conditions

1. The consignment shall not be broken in transit and shall be routed to the destination via.....
2. Vehicle No..... has left the licensed premises of this unit with I.M.F.L. detailed overleaf at..... a.m./p.m. today on.....

Officer in charge ..... F.L. 9/F.L. 9A/F.L. 10A/B-1-A licensee .....

Date.....

Reverse of Form F.L.14

(Details of I.M.F.L. being transported under the cover of this transport permit)

Sl. No.

Kind

Label

Batch No. with full details

No. of boxes

Strength

Contents in Bulk Litres

Contents in Proof Litres

Total

M.

Q.

P.

N.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

Officer in charge ..... F.L. 9/F.L. 9A/F.L. 10A/B-1-A licensee .....

[Form F.L. 14A]

[See Rule 14(2)]

Transport Permit

No.....

Date.....

(In triplicate)

Part I ? To be retained in the office of issue.

Part II ? For the purchasing licensee. This part will cover the consignment during transit and thereafter become a part of his records.

Part III ? For the officer who has Issued No Objection Certificate by mail.

Against the No Objection Certificate No..... dated..... issued by Assistant Excise Commissioner/District Excise Officer....., this transport permit is granted to Mr./Messrs ..... holder of F.L. 1A/F.L. 1 AAA/F.L. 1D licence, to transport to his/their licensed premises at.... proof/bulk of I.M.F.L., details whereof are given overleaf, from Foreign Liquor Warehouse'..... This permit holder has deposited Rs..... (in figures and words both), as duty payable on I.M.F.L. being transported, by challan No..... dated..... in..... district.

Conditions

1. The consignment shall not be broken in transit and shall be routed to the destination via.....
2. Vehicle No..... has left this 'Foreign Liquor Warehouse'..... at.....a.m./p.m. today on.....



3. This permit is valid up to.....a.m./p.m. of.....

Officer in charge 'Foreign Liquor Warehouse' ..... (M.P.)

Date.....

Reverse of Form F.L. 14A

(Details of I.M.F.L. being transported under the cover of this transport permit)

Sl. No.

Kind

Label

Batch No. with full details

No. of boxes

Strength

Bulk Litres

Proof Litres

Total

M.

Q.

P.

N.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

Officer-in-charge 'Foreign Liquor Warehouse' ..... (M.P.)

Date.....

[Form F.L 15]

[See Rule 14 (3)]

Transport Permit

No.....

Date.....

(In triplicate)

Part I ? To be retained in the office of issue.

Part II ? For the purchasing licensee. This part will cover the consignment during transit and thereafter kept in records.

Part III ? For the selling licensee for his records.

Mr./Messrs..... holder of F.L. 2/F.L. 3/F.L. 4/F.L. 4A/F.L. 5/C.S. 2A and C.S. 2B licence is hereby permitted to transport..... bulk/proof litres of I.M.F.L. to his/their licensed premises at..... from F.L. 1 A/F.L. 1 AAA /F.L. 1D licensee of..... Rs. 25 (twenty five) has been deposited as transport fee by challan No..... dated.....

This permit shall be valid up..... a.m./p.m. of.....

Conditions

1. The consignment shall not be broken in transit.

2. It shall be routed through..... to the destination.

3. The licensee transporting shall get the details, about I.M.F.L. being transported, entered by the supplying..... licensee on the reverse side of Part II of this permit.

4. The supplying..... licensee shall also enter the details of I.M.F.L. supplied on the reverse side of Part III of the

permit. He will also append his signature to Part II and Part III of the permit on the back side.

Assistant Excise Commissioner/ District Excise Officer ..... (M.P.)

Date.....

Reverse of Form F.L.15

(Details of I.M.F.L. that is being transported under the cover of this transport permit)

Sl. No.

Kind

Label

Batch No. with full details

No. of boxes

Strength

Bulk Litres

Proof Litres

Total

M.

Q.

P.

N.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

Place.....

.....

Date of Issue.....

F.L. 1A/F.L. 1AAA/F.L. 1D Licensee

Time of Issue.....

.....M.P.

[Form F.L 16]

[See Rules 14 (4) and 15 (2)]

Transport Permit

No.....

Date.....

(In quadruplicate)

Part I ? To be retained in the office of issue.

Part II ? For the purchasing licensee. This part will cover the consignment during transit and thereafter shall be kept in records.

Part III ? For the selling licensee.

Part IV ? For officer-in-charge F.L. 9/F.L. 9A licence by mail.

This transport permit is granted to..... holder of F.L. 9/F.L. 9A licence, to transport from this unit..... proof/bulk litres of spirit/E.N.A., detailed in the schedule below, to his licensed premises at/in..... This permit holder has deposited Rs. 25 (twenty five) as transport fee by challan No..... dated..... in..... district.

detailing issue of E.N.A./Spirit

No. of tankers/drums

Bulk litres

Strength

Proof litres

Remarks

(1)

(2)

(3)

(4)

(5)

Conditions

1. The consignment shall not be broken in transit and shall be routed to the destination via.....

2. Tanker/Vehicle No..... has left the licensed premises of this unit with E.N.A./spirit given in the above schedule at..... a.m./p.m. today on.....

3. This permit shall be valid upto.....

Officer in charge D1 licensee .....(M.P.)

Date.....

[Form F.L. 17]

[See Rule 14 (5)]

Transport Permit

No.....

Date.....

(In quadruplicate)

Part I ? To be retained in the office of issue.

Part II ? For the F.L. 6 licensee. This part shall cover the consignment during transit.

Part III ? For the selling licensee for record.

Part IV ? For the Assistant Excise Commissioner/District Excise Officer of the district wherein the licensed premises of F.L. 6 licence is situated by mail.

This transport permit is granted to....., holder of F.L.6 licence, to transport..... proof/bulk litres of I.M.F.L., details whereof are given overleaf, from..... an F.L. 9/F.L. 9A/F.L. 10A/B-1-A licensee to their licensed premises at.....

This permit holder has deposited Rs. 25 (twenty five) as transport fee by challan No..... dated ..... in.....district.

Conditions

The consignment shall not be broken in transit and shall be routed to the destination via.....

Vehicle No..... has left the licensed premises of this unit with I.M.F.L. detailed overleaf at..... a.m./p.m. today on.....

This permit shall be valid upto.....

Officer in charge F.L. 9/F.L. 9A/F.L. 10A/B-1-A licensee ..... (M.P.)

Date.....

Reversed Form F.L. 17

(Details of I.M.F.L. that is being transported under the cover of this transport permit)

Sl. No.

Kind

Label

Batch No. with full details

No. of boxes

Strength

Bulk Litres

Proof Litres

Total

M.

Q.

P.

N.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

Officer in charge

Date.....

F.L. 9/F.L. 9A/F.L. 10A/B-1-A licensee

Place.....

.....M.P.

[Form F.L 18]

[See Rule 14 (6)]

Transport Permit

No.....

Date.....

(In quadruplicate)

Part I ? To be retained in the office of issue.

Part II ? For the purchasing licensee for record.

Part III ? For the selling licensee for record.

Part IV ? For the Assistant Excise Commissioner/District Excise Officer of the district wherein the licensed premises of the purchasing licensee and situated by mail.

This transport permit is granted to ....., holder of F.L. 3 /F.L. 7/F.L. 8 licence to-transport..... proof/bulk litres of foreign liquor, details whereof are given overleaf, to his/their licensed premises at..... from F.L. 1A/F.L. 1AAA/F.L. 1D/F.L. 6/F.L. 7 shop at..... Duty/bottle fee/transport fee payable under the rules has/have been deposited in..... district as per details given below. This permit shall remain valid up to.....

Details of deposit

Sl. No.

Head

Amount

Chllan No. and Date

(1)

(2)

(3)

(4)

1

Duty

2

Bottle fee

3

Transport Fee

Conditions

1. The consignment shall not be broken in transit.

2. It shall be routed through..... to the destination.

3. The licensee supplying foreign liquor shall enter the relevant details on the back side of Part II and Part III of this permit in the columns provided for the purpose and append his signature thereof.

Assistant Excise Commissioner/ District Excise Officer, ..... (M.P.)

Date.....

Reverse of Form F.L.18

(Schedule detailing issue of foreign liquor against this transport permit)

Sl. No.

Kind

Label

Batch No. with full details

No. of boxes

Strength

Bulk Litres

Proof Litres

Total

M.

Q.

P.

N.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

Date of issue.....

F.L. 1A/F.L. 1AAA/F.L. 1D/F.L. 6/F.L. 7 licensee

Time of issue.....

.....M.P.

[Form F.L 19]

[See Rule 14 (7)]

Transport Permit

No.....

Date.....

(In triplicate)

Part I ? To be retained in the office of issue.

Part II ? For record at the.....licence shop wherefrom country liquor/I.M.F.L. is transported.

Part III ? This part shall cover the consignment during transit and thereafter will be kept in records at.....licence shop where to the consignment has been transported.

Mr./Messrs..... country liquor/foreign liquor licensee of..... group of shops for the year.....is hereby permitted to transfer..... bulk/proof litres of country liquor and/or..... bulk/proof litres of I.M.F.L. from F.L. 1A/F.L. 1AAA/F.L. 1D/C.S. 2A/C.S. 2B licence shop..... of his group to F.L. 1A/F.L. 1 AAA/F.L. 1D/C.S. 2A/C.S. 2B licence shop..... also of his group.

This transport permit shall be valid upto.....a.m./p.m. of.....

Conditions

The consignment shall not be broken in transit.

It shall be routed through..... to the destination.

The F.L. 1A/F.L. 1AAA/F.L. 1D/C.S. 2A/C.S. 2B licensee supplying/ transferring country liquor/I.M.F.L. shall enter the details of country liquor/ I.M.F.L. thus supplied/transferred on the back side of Part II and Part III of this permit in the columns provided for the purpose and append his signature thereto.

Assistant District Excise Officer/ Sub-Inspector Excise Circle..... District.....(M.P.)

Date.....

Reverse of Form F.L.19

(Schedule detailing transfer of Country Liquor/Foreign Liquor against this transport permit)

Sl. No.

Kind

Label

Batch No. with full details

No. of boxes

Strength

Bulk Litres

Proof Litres

Total

M.

Q.

P.

N.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

PLace.....

F.L. 1A/F.L. 1AAA/F.L. 1D/C.S. 2A/C.S. 2B licensee

Date of issue.....

.....

Time of issue.....

.....

.....M.P.

Form FL 20

[Rules 10(1 )(c)(g), 10(1 )(i)(g), 10(2)(c), 15(1)(c)(d)]

No.....

Date.....

[in triplicate]

Ist Part : (To be retained in the office of issue)

IIInd Part : (To be mailed to the authority who may authorise the export)

III Part : (To be handed over to the applicant)

To,

.....

Subject. - No-objection certificate for importing (a) Foreign liquor manufactured outside India in sealed bottles or (b) in bulk, (c) special liquor manufactured in India or (d) IMFL (sealed bottles) after payment of duty or (e) ENA/Spirit for the manufacture of IMFL.

Shri..... holder of FL licence in the district..... intends to import..... proof/bulk litres/bottles of..... manufactured in..... from Shri..... holder of..... licence in your district. This office has no objection if an export permit for the same is issued by you. This NOC shall be valid upto.....

Details of deposits :

Sl. No.

Head

Amount

Chllan No. and Date

(1)

(2)

(3)

(4)

1

Duty

.....

.....

2

Import fee

.....

.....

3

Bottle fee

.....

.....

Authorised Excise Officer for Excise Commissioner Madhya Pradesh, Gwalior

Form FL 21

[Rule 10(1 )(a)(g)]

No.....

Date.....

[in triplicate]

Ist Part : (To be retained in the office of issue)

IIInd Part : (To be mailed to the authority who may authorise the export)

III Part : (To be handed over to the applicant)

To,

.....

Subject. - No-objection certificate for importing IMFL without payment of duty.

Shri..... holder of [FL 10-A]/FL 6 licence of..... district, MP intends to import..... proof/bulk litres of IMFL from..... holder of..... licence in your district and has paid Rs..... by challan No..... dated..... as import fee on the quantity. This office has no objection if an export permit for the same is issued by you. This NOC shall be valid upto.....

District Excise Officer .....(M.P.)

Form FL 22

[Rule 12(6)(7)]

[in quadruplicate]

Part I ? (To be retained in the office of issue).

Part II ? (To be handed over the exporting licensee. This part will accompany and cover the consignment during movement).

Part III ? (To be sent under registered post to the officer-in-charge of the importing unit).

Part IV ? (To be send under registered post to the Officer, who authorised the import who will transmit to the officer-in-charge of the importing unit for verification of the consignment and onward transmission to the office who issued the export permit).

No.....

Date.....

Permit for export of foreign liquor in bond

Shri..... holder of licence in Form FL 9, FL 9-A is hereby permitted to export foreign liquor as per following details from his licensed premises at..... to the warehouse situated at..... in the..... state. This permit shall be valid upto.....

(Particulars of Packages to be Exported)

No

Kind

Label

Batch No. with details

Contents in Bulk litres

Strength

Contents in proof litres

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Vehicle No..... with the consignment has started off from the licensed premises at..... a.m./p.m. on.....

Date.....

Officer-in-charge FL 9, FL 9-A District..... Madhya Pradesh

Reverse of Part IV Form FL 22

Verification Report

Particulars of the packages received

No

Kind

Label

Batch No. with details

Contents in Bulk litres

Strength

Contents in proof litres

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Date.....

(Officer-in-charge of the importing unit)

Verification report sent to the officer-in-charge of FL 9-A licence for necessary action and record.

Date.....

(Officer-in-charge of the importing unit)

Form FL 23



[Rule 12(4)]

Form of bond to be executed on the removal of foreign-liquor from the licensed premises of FL 9/FL 9-A licence at..... for export in bond.

I/We..... (hereinafter referred to as the licensee have been permitted under Rule 12 of the Foreign Liquor Rules, 1996 to export IMFL in bond to other States of India in accordance with terms and conditions of the export permit in Form FL 22 within the stipulated time. I/We hereby bind myself/ourselves as well as my/our heirs/legal representatives to the Governor of Madhya Pradesh for the sum of Rs..... and undertake that, in case I/We am/are unable to furnish the proof to the satisfaction of the officer authorising the export, that the IMFL mentioned in the export-permit/permits that has/have been issued in my/our favour, has been duly and conclusively exported within the specified time, I/We shall pay full duty at the prescribed rate thereon to the Governor of Madhya Pradesh. It shall be in addition to any other penalty that may be imposed on me/us for violation of the terms and conditions relating to export.

.....

(Signature)

M/S..... holding licence in Form FL 9/FL 9-A has/have been permitted under Foreign Liquor Rules, 1996 to export foreign liquor from his/their licensed premises at..... without payment of duty. The conditions of this permission are :-

(1)

That the licensee shall not at any one time export any quantity of IMFL, the total duty on which at the prescribed rate at any given point of time exceeds Rs.....

(2)

That the license shall deliver the IMFL to the officer-in-charge of the warehouse of destination during the period of validity mentioned in the export-permit, failing which he shall pay to the Governor of M.P., prescribed duty at the relevant rate on the quantity of IMFL not delivered. This shall be in addition to any other penalty imposed on him under the provisions of the Act and the rules made thereunder.

Signature in the presence of:

Witness-I

Collector on behalf of the

Witness-II

Governor of Madhya Pradesh

Place.....

Date.....

Notifications

(1)

[Notification No. (16) B-1-13-96-CTD-V, dated 1-4-1996.] - In pursuance of the provisions contained in clauses (a) and (aa) sub-rule (1) of Rule 8 read with sub-rule (2)(a) of Rule 18 of the Madhya Pradesh Foreign Liquor Rules, 1996 published under this department notification No. (11) B-1-33-93-CTD-V, dated the 29th March, 1996 the State Government hereby directs that the Foreign Liquor Licences in Form FL 1-A shall be disposed off by a combination of the auction /tender and the fee for per bottle system for the period commencing from 1st April, 1996, and ending on the 31st March, 1997 for the shops to be opened from 1st April, 1996.

(2)

[Notification No. (16) B-1-13-96-CTD-V, dated 1-4-1996.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes for the following licences the annual licence fees indicated against each :-

1.

FL 9 Licence :

(Bottling Licence)

Rs. 2,20,000/- per annum

2.

FL 9-A Licence :

(Special Bottling Licence)

Rs. 20,000/- per annum

3.

FL 11 Licence :

(Wholesale licence of foreign liquor)

Rs. 3,00,000/- per annum

4.

FL 10 Licence :

(Manufacturer's Distribution Licence)-

(a) When granted to a manufacturer or his authorised nominee for sale of foreign liquor manufactured by one manufacturer

Rs. 5,00,000/- per annum

(b) When granted to a nominee of more than one manufacturer for whole sale distribution of foreign liquor manufactured by such manufacturers.

Rs. 5,00,000/- plus Rs. 3,00,000/- per annum for each additional manufacturer in addition to the first manufacturer authorising the nominee.

(c) When granted for sale of Beer manufactured by a manufacturer to a nominee who already holds authorisation of atleast one manufacture of foreign liquor.

Licence fees as indicated in clauses (a) and (b) above, as the case may be, plus Rs. 1,50,000/- per annum for each such manufacturer of beer.

(3)

[Notification No. (14) B-1-13-96-CTD-V, dated 1-4-1996.] - In exercise of the powers conferred by sub-rule (13) of Rule 18 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes fees in respect of bottling, import, export of foreign liquor and transport of ENA/RS as specified below:-

Bottling fee, payable by FL 9 licensee.- Rs. 0.05 per bottle (Bottle includes magnum, quart, pint or nip bottle) bottled by the manufacturer bottling unit.

Import fee.- (a) For Spirit-Rs. 15 per proof litre.

(b)

For Malt Liquor-Rs. 4.50 per Bottle including beer, ale, porter stout and cider.

Export fee.- (a) For Spirit-Rs. 0.50 per proof litre.

(b)

For Malt Liquor-Rs. 0.30 per Bottle including beer, ale, porter stout and cider.

Transport fee.- (a) ENA-Rs. 50/- per permit irrespective of the quantity to be transported.

(b)

Rectified spirit-Rs. 25/- per permit irrespective of the quantity to be transported.

(4)

[Notification No. (15) B-1-13-96-CTD-V, dated 1-4-1996.] - In pursuance of the provisions of the sub-rule (3) of Rule 9 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government prescribes Rs. 1,000/- (Rs. One thousand only) as Registration fee for each label of foreign liquor which may be sold in or transported into or exported from Madhya Pradesh.

(5)

[Notification No. (25)-B-I-49-96-(CTD)-V, dated 3-7-1996.] - In exercise of the powers conferred by clause (7) of Rule 2 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby declares the divisions as specified in column 1 of the table below and shall have territorial jurisdiction on the districts as specified in the corresponding entries in column 2 of the said table, namely:-

Table

Name of Division

Names of Districts falling within territorial jurisdiction of the Division

1

2

1. Gwalior

1. Gwalior, 2. Bhind, 3. Morena, 4. Datia, 5. Shivpuri, 6. Guna.

2. Bhopal

1. Bhopal, 2. Vidisha, 3. Raisen, 4. Sehore, 5. Rajgarh, 6. Hoshangabad.

3. Indore

1. Indore, 2. Khandwa, 3. Khargone, 4. Dhar, 5. Jhabua.

4. Ujjain

1. Ujjain, 2. Mandsaur, 3. Ratlam, 4. Dewas, 5. Shajapur.

5. Jabalpur

1. Jabalpur, 2. Narsinghpur, 3. Mandla, 4. Seoni, 5. Chhindwara, 6. Balaghat.

6. Sagar

1. Sagar, 2. Damoh, 3. Tikamgarh, 4. Chhatarpur, 5. Partna.

7. Rewa

1. Rewa, 2. Satna, 3. Shahdol, 4. Sidhi.

8. Bilaspur

1. Bilaspur, 2. Raigarh, 3. Surguja.

9. Raipur

1. Raipur, 2. Durg, 3. Rajnandgaon, 4. Bastar

(6)

[Notification No. (31)-B-1-13-96-CTD-V, dated 6-8-1996.] - In pursuance of the provisions of sub-rule (2) of Rule 3 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribe Rs. 10,000/- (Rs. Ten Thousand only) as application fee for grant of licence for manufacture and bottling of foreign liquor.

(7)

[Notification No. (28) B-13-96-CTD-V, dated 6.8.1996.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes Rs. 500/- (Rupees Five hundred only) per day as licence fee for occasional licence to be granted in Form FL 25.

(8)

[Notification No. (29) B-13-96-CTD-V, dated 6-8-1996.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes Rs. 5000/- (Rupees Five Thousand only) as Annual Licence fee for Club licence to be granted in Form FL 4.

(9)

[Notification No. (30) B-13-96-CTD-V, dated 6-8-1996.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes the annual licence fees as specified in column (3) of the table below for the licences specified in column (2) of the said table, namely :-

Table

S.No.

Name of Licence

Fee

1.

FL 6

Rs. 10,000/- per annum

2.

FL 7

Rs. 1,000/- per annum

3.

FL 8

Rs. 1,000/- per annum

(10)

[Notification No. (8) B-1-50-97-CT-V, dated 31-3-1997.] - In exercise of the powers conferred by clause (a) of sub-rule (2) of Rule 18 of Madhya Pradesh Foreign Liquor Rules, 1996 and in supersession of this department's Notification No. (32) B-1-13-96-CTD-V, dated 6.8.1996, the State Government hereby prescribes the bottle fee per quart bottle as

specified in columns (2), (3) and (4) of the table below for the issues taken by licensees holding licences specified in column (1) of the said table, namely :-

Table

Kind of licence

Foreign liquor (spirit other than malt liquor and cider)

Malt liquor (beer, ale, porter, cider)

Foreign liquor (spirit) imported from outside the country other than malt liquor and cider

1

2

3

4

1. FL 1-A

Rs. 50/-

2. FL 1-C

(For Malt liquor only)

Rs. 1.50

3. FL 7

Rs. 4.00

Rs. 1.50

Rs. 50/-

4. FL 8

Rs. 4.00

Rs. 1.50

Rs. 50/-

(11)

[Notification No. B-1-26-98-CT-V, dated 4-4-1998.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby makes the following amendment in this department Notification No. (21) B-1-13-96-CTD-V, dated 17.5.1996, namely :-

Amendment

In the said notification, for serial number (2) and entries relating thereto, the following serial number and entries relating thereto shall be substituted, namely :-

(1)

(2)

(3)

(4)

2

FL 1-C Licence (Licence permitting sale and consumption of beer alongwith country liquor on the premises)

(a) Where the licensed premises is situated within an urban area.

(b) Where the licensed premises is situated in a rural area.

Rs. 50,000/-per annum

Rs. 35,000/-per annum

2. This amendment shall come into force with effect from 1st April, 1998.

(12)

[Notification No. (10) B-1-25-98-CT-V, dated 4-4-1998.] - In exercise of the powers conferred by clause (a) of sub-rule (2) of Rule 18 of Madhya Pradesh Foreign Liquor Rules, 1996 and in supersession of this Department's Notification No. (32) B-1-13-96-CTD-V, dated 6.8.1996, the State Government hereby prescribes the bottle fee per quart bottle as specified in columns (2), (3) and (4) of the table below for the issues taken by licensees holding licences specified in column (1) of the said table, namely :-

Table

Kind of licence

Foreign liquor (spirit other than malt liquor and cider)

Malt liquor (beer, ale, porter, cider)

Foreign liquor (spirit) imported from outside the country other than malt liquor and cider

1

2

3

4

1. FL 1-A

Rs. 50/-

2. FL 1-C

(For Malt liquor only)

3. FL 7

Rs. 4.00

Rs. 1.50

Rs. 50/-

4. FL 8

Rs. 4.00

Rs. 1.50

Rs. 50/-

2. This notification shall come into force w.e.f. 1-4-1998.

(13)

[Notification No. (20) B-1-44-99-CTD-V, dated 31-3-1999.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes annual licence fees for FL 10 Licence (Manufacturer's Distribution Licence) as indicated below :-

(a)

When granted for wholesale of foreign liquor manufactured by one manufacturer.

Rs. 8,00,000/- per annum.

(b)

When granted for wholesale of foreign liquor manufactured by more than one manufacturer.

Rs. 8,00,000/- plus Rs. 3,00,000/- per annum for each

additional manufacturer in addition to the first manufacturer or Rs.

1,50,000/- for each additional manufacturer of beer only as prescribed

in clause (c) below.

(c)

When granted for wholesale of only "beer" manufacturer

by a manufacturer in addition to wholesale of foreign liquor

manufactured by other manufacturer(s).

Rs. 1,50,000/- per annum.

Note. - Foreign liquor includes whisky, brandy, rum, gin, vodka and other brands commonly known as spirits and beer, ale, stout, cider etc.

This notification shall be deemed to have come into effect from 1st April, 1999.

(14)

[Notification No. (26) B-1-62-99-CTD-V, dated 15-4-1999.] - In exercise of the powers conferred by sub-rule (13) of Rule 18 of Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby directs that in supersession of its previous notification issued in this behalf, import fee on the import of foreign liquor shall be payable at the rate specified in column (3) of the table given below :-

Table

S.No.

Kind of foreign liquor

Rate

(1)

(2)

(3)

1.

For Spirit, Rs. 22 per proof litre

2.

For Malt liquor including beer, ale, porter, stout and cider

Rs. 7 per bottle

This notification shall be deemed to have come into force from 1st April, 1999.

(15)

[Notification No. (1) B-1-177-99-CTD-V, dated 11-1-2000.] - In pursuance of the provisions of the sub-rule (3) of Rule 9 of the Madhya Pradesh Foreign Liquor Rules, 1996 and in supersession to the notifications issued in the past in this behalf, the State Government hereby prescribes Rs. 10,000/- (Rs. Ten thousand only) as Registration fee for each label of foreign liquor which may be sold in or transported into or exported from Madhya Pradesh.

(16)

[Notification No. (19) B-1-37-2000-CTD-V, dated 30-3-2000.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes for the following licences the annual licence fee indicated against each :-

1.

FL 9 Licence :

Rs. 4,000,000/- per annum.

(Bottling Licence)

2.

FL 9-A Licence :

Rs. 50,000/- per annum.

(Special Bottling Licence)

This notification shall come into force with effect from 1st April, 2000.

(17)

[Notification No. (21) B-1-36-2000-CTD-V, dated 30-3-2000.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribed the annual licence fees as shown in column 4 of the table below for different kinds of licences mentioned in the corresponding entry in column 2 thereof :-

Table

S. No.

Kind of Licence

Population/membership

Licence Fees

1

2

3

4

1.

FL 2 Licence : (Public house or Restaurant Bar Licence)

(a) For a town/place of which the population does not exceed one lac

Rs. 1,50,000/- per annum

(b) For a town/place of which the population exceeds one lac but does not exceed three lac, and

Rs. 1,75,000/- per annum.

(c) For a town/place of which the population exceeds three lac.

Rs. 2,00,000/- per annum.

2.

FL 3 Licence : (Hotel Bar Licence)

(a) For a town/place of which the population does not exceed one lac

Rs. 2,50,000/- per annum

(b) For a town/place of which the population exceeds one lac but does not exceed three lac, and  
Rs. 3,00,000/- per annum.

(c) For a town/place of which the population exceeds three lac  
Rs. 3,50,000/- per annum

(18)

[Notification No. (19) B-1-37-2000-CTD-V, dated 30-3-2000.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes for the following licences the annual licence fees indicated against each :-

1.

FL 9 Licence : (Bottling Licence)

Rs. 4,00,000/- per annum.

2.

FL 9-A Licence : (Special Bottling Licence)

Rs. 50,000/- per annum.

This notification shall come into force with effect from 1st April, 2000.

(19)

[Notification No. (21) B-1-36-2000-CTD-V, dated 30-3-2000.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes the annual licence fees as shown in column 4 of the table below for different kinds of licences mentioned in the corresponding entry in column 2 thereof :-

Table

S. No.

Kind of Licence

Population/ membership

Licence Fees

(1)

(2)

(3)

(4)

1.

FL 2 Licence : (Public house or Restaurant Bar Licence)

(a) For a town/place of which the population does not exceed one lac

Rs. 1,50,000/- per annum

(b) For a town/place of which the population exceeds one lac but does not exceed three lac, and

Rs. 1,75,000/- per annum.

(c) For a town/place of which the population exceeds three lac.

Rs. 2,00,000/- per annum.

2.

FL 3 Licence : (Hotel Bar Licence)

(a) For a town/place of which the population does not exceed one lac, Rs. 2,50,000/- per annum

Rs. 2,50,000/- per annum.

(b) For a town/place of which the population exceeds one lac but does not exceed three lac, and

Rs. 3,00,000/- per annum.

(c) For a town/place of which the population exceeds three lac

Rs. 3,50,000/- per annum

This Notification shall come into force with effect from 1st April, 2000.

(20)

[Notification No. (32) B-1-52-2000-CTD-V, dated 10-4-2000.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes annual fees of Rs. 5,00,000/- for FL 10-A licence (Outside Manufacturer's Central Godown Licence).

This notification shall be deemed to have come into effect from 1st April, 2000.

(21)

[Notification No. (3) B-1-17-2001-CTD-V, dated 15-3-2001.] - In exercise of the powers conferred by clause (a) of sub-rule (2) of Rule 18 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes bottle fee per quart bottle as specified in columns (2), (3) and (4), (5), (6) of the table below for the licences specified in column (1) of the said table, namely :

Table

Kind of licence

Foreign Liquor (spirit) other than malt & cider

Malt Liquor (Beer, ale) Porter & cider

Foreign Liquor imported from foreign countries

Spirit

Wine

Malt

(1)

(2)

(3)

(4)

(5)

(6)

F.L. 1-A

-

-

200

100

50

F.L. 7

Rs. 4.00

Rs. 1.50

200

100

50

F.L. 8

Rs. 4.00

Rs. 1.50

200

100

50

(2)

This notification shall come into force with effect from 1st April, 2001.

(22)

[Notification No. (7) B-1-21-2001-CTD-V, dated 22-3-2001.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes the annual licence fees of Rs. 1,00,000 (One lac) per annum for the licence in Form F.L.1D.

(23)

[Notification No. (11) B-1-20-2001-CTD-V, dated the 31-3-2001.] - In exercise of the powers conferred by sub-rule (13) of Rule 18 of the Madhya Pradesh Foreign Liquor Rules, 1996 and in supersession of this Department's Notifications No. (41) B-1-168-99-CTD-V, dated 3rd July, 2000 and No. (8) B-1-22-2001-CTD-V, dated the 22nd March, 2001, the State Government hereby prescribes the bottling fee as specified below for the F.L.9A licensee to bottle Indian Made Foreign Liquor :-

Sl. No.

Description of Indian Made Foreign Liquor to be bottled under Franchise arrangement



Payable bottling fee (Rs.)

(1)

(2)

(3)

Foreign Liquor (Spirit)-

(A)

For each brand/label to be sold within Madhya Pradesh only-

(i) Per quart bottle

Rs. 6.20

(ii) Per pint bottle

Rs. 3.10

(iii) Per nip bottle

Rs. 1.55

(iv) Per Magnum bottle

Rs. 9.30

(B)

For each brand/label to be exported-

(i) Per quart bottle

Rs. 0.60

(ii) Per pint bottle

Rs. 0.30

(iii) Per nip bottle

Rs. 0.15

(iv) Per Magnum bottle

Rs. 0.90

This Notification shall come into force with effect from 1st April, 2001.

(24)

[Notification No. (14) B-1-48-2002-CTD-V, dated the 9-5-2002.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes the annual licence fee for the beer licences (F.L.1D) to be granted in any area to the licensee of country liquor and foreign liquor shop area, indicated as under :-

Sl. No.

Name of Area

Licence fees for licensees of country liquor shop

Licence fees for licensees of foreign liquor shop

1.

Rural Area

1,000

10,000

2.

Nagar Panchayat

5,000

20,000

3.

Nagar Palika

7,500

35,000

4.

Nagar Nigam

10,000

50,000

The licence fee for the F.L.1D licences to be granted in SADA or cantonment shall be same as prescribed for any of the areas mentioned above wherein such SADA cantonment is situated.

However, the licence fee for beer licences as granted independently of foreign liquor or country liquor shall be [Rs. 25,000 (Twenty five thousand)] for rural area and [Rs. 35,000 (Thirty five thousand)] for other areas.

This Notification shall be deemed to have come into force with effect from 1st April, 2002.

(25)

[Notification No. (17) B-1-48-2002-CTD-V, dated 9-5-2002.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes the annual licence fee of Rs. 1,00,000 (one lac) for F.L.10-A licence (outside manufacture central godown licence).

This Notification shall be deemed to have come into force with effect from 1st April, 2002.

(26)

[Notification No. (26) B-1-120-2002-CTD-V, dated 17-9-2002.] - In pursuance of the provisions of sub-rules (2) and (3) of Rule 9 of the Madhya Pradesh Foreign Liquor Rules, 1996 and in supersession of the notification issued in the past in this behalf, the State Government hereby prescribes Rs. 10,000/- (ten thousand only) as registration fee at the time of first registration and renewal fee of Rs. 1,000 (one thousand only) payable for one financial year or part thereof, for each label of foreign liquor which may be sold in or transported into or exported from and imported into the State of Madhya Pradesh.

(27)

[Notification No. (47) B-1-2-2003-CTD-V, dated 24-3-2003.] - in exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, and in supersession of this Department Notification No. (57) B-1-111-98-CTD dated 10th December, 1999, the State Government hereby prescribes the annual licence fee for F.L. 4A licence (Commercial Club Licence) as below :-

(a)

When the licensed premises of the F.L.4-A licences are situated in Bhopal, Indore, Gwalior and Jabalpur districts.

Rs. 1,50,000 (One lac fifty thousand) per annum.

(b)

When such licensed premises are situated in any other districts.

Rs. 75,000/- (Seventy five thousand) per annum.

This notification shall come into force with effect from 1st April, 2003.

(28)

[Notification No. (49) B-1-2-2003-CTD-V, dated 24-3-2003.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, the State Government hereby prescribes Rs. 25,000 (Rs. Twenty five thousand) as annual fee for Club licence to be granted in Form F.L. 4.

This notification shall come into force with effect from 1st April, 2003.

(29)

[Notification No. (14) B-1-16-2004-CT-V, dated 16-6-2004.] - In exercise of the powers conferred by sub-rule (2) of Rule 8 of the Madhya Pradesh Foreign Liquor Rules, 1996, and in supersession of this department's notification No. (16) B-1-48-2002-CTD-V, dated the 9th May, 2002, the State Government hereby prescribes the annual licence fee for F.L. 3 licence (Hotel Bar Licence), as shown in column (3) of the table below for the category of town/city mentioned in the corresponding entry in column (2) thereof, namely :-

Table

Sl. No.

Category of Town/City

Licence Fee per annum

(1)

(2)

(3)

1.

For a town/city of which the population does not exceed one lac.

Rs. 2,50,000

2.

For a town/city of which the population exceeds one lac but does not exceed three lacs.

Rs. 3,50,000

3.

For a town/city of which the population exceeds three lacs but does not exceed ten lacs, and

Rs. 4,00,000

4.

For a town/city of which the population exceeds ten lacs.

Rs. 5,00,000

However, the licence fee for grant of F.L. 3 Licences to the hotels of Madhya Pradesh Tourism Development Corporation shall be Rupees one lac seventy-five thousand per annum payable in two equal instalments on or before the beginning of financial year and thereafter before expiring of six months.

This notification shall be deemed to have come into force with effect from 1st April, 2004.

(30)

[Notification No. (17) B-1-34-2004-CT-V, dated 18-8-2004.] - In exercise of the powers conferred by sub-rule (13) of Rule 18 of the Madhya Pradesh Foreign Liquor Rules, 1996 the State Government hereby prescribes the bottling fee as specified for the F.L.9A licensee to bottle Indian Made Foreign Liquor (Beer) payable bottling fee at the Rate of Rs. 2.50 per Quart Bottle and proportionately on other sizes.

This notification shall have effect from the date of its Publication in the Official Gazette.

(31)

[Notification No. (16) B-1-34-2004-CT-V, dated 18-8-2004.] - In exercise of the powers conferred by sub-rule (13) of Rule 18 of the Madhya Pradesh Foreign Liquor Rules, 1996 the State Government hereby prescribes the import fee payable at the rate of Rs. 5.00 per bulk litre on the import of special liquor used as ingredient for blending purpose by a F.L. 9 or F.L. 9A licensee.

This notification shall have effect from the date of its Publication in the Official Gazette.

Related AI tags, queries and research notes

Translation